

Muluki Criminal Code, 2017

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 78

National Penal Code, 2074 (2017)

Date of Certification and Publication

2074.6.30 (October 16, 2017)

Amending Acts

1. Act to Amend Some Nepal Acts Relating to National Code, 2075 (2018) 2076.10.02 (January 16, 2020)
2. Act to Amend Some Acts Relating to Criminal Offenses and Criminal Procedure, 2079 (2022) 2079.3.31 (July 16, 2022)
3. Act to Amend Some Acts Against Sexual Violence, 2079 (2022) 2079.3.31 (July 16, 2022)
4. Act to Amend Some Nepal Acts Relating to National Code, 2080 (2023) 2080.04.12 (July 28, 2023)

Act Number 36 of the Year 2074 (2017)

Preamble: Whereas, it is expedient to maintain law and order in the country and uphold the morality, decency, integrity, convenience, and economic well-being of the general public, to maintain good relations and peace among various religious and cultural communities, to prevent and control criminal offenses, and to amend and consolidate the prevailing laws relating thereto and make provisions of a Code relating to criminal offenses suitable to the times;

Now, therefore, the Legislature-Parliament, pursuant to Sub-article (1) of Article 296 of the Constitution of Nepal, has enacted this Act. Part - 1

General Provisions

Chapter - 1

Preliminary

1. Short Title and Commencement: (1) The name of this Act is amended by the Act to Amend Some Nepal Acts Relating to National Code, 2075 (2018)."National Penal Code, 2074 (2017)".

(2) This Code shall come into force from the 1st day of Bhadra of the year 2075 (August 17/18, 2018). 2.

Extra-territorial Application of the Code: (1) If a person commits any of the following offenses outside Nepal, such person shall be punished in accordance with this Code as if such offense was committed within Nepal: (a) An offense under Chapter 1 of Part 2, except section 54, (b) An offense committed under Chapter 17 of Part 2 by kidnapping a person from Nepal, (c) An offense under sections 167, 276 and 279, (d) An offense under Chapters 22 and 23 of Part 2 committed with the intention of bringing into circulation or importing into Nepal, (e) An offense under this Act committed while performing any official capacity in the Government of Nepal, a Provincial Government or a Local Level, or any organized institution wholly or substantially owned or controlled by the Government of Nepal, a Provincial Government or a Local Level. (2) If a person commits any offense under this Act within an aircraft or watercraft registered in Nepal while outside Nepal, such person shall be punished in accordance with this Act as if such offense was committed within Nepal. (3) If a

amended by the Act to Amend Some Nepal Acts Relating to National Code, 2075 (2018). Nepalese citizen or any other person commits any of the following offenses outside Nepal against any Nepalese citizen, such person shall be punished in accordance with this Act as if such offense was committed within Nepal: (a) An offense of homicide or attempt, abetment or conspiracy to commit homicide, (b) An offense of abandoning a helpless person, (c) An offense of causing grievous hurt, Added by the Act to Amend Some Acts Relating to Criminal Offenses and Criminal Procedure, 2079 (2022). (c1) An offense under section 192A, (d) An offense of kidnapping, hostage-taking or unlawful detention, (e) An offense of rape or incest, (f) An offense of criminal trespass, criminal benefit, criminal breach of trust, forgery, theft, cheating, dacoity or criminal misappropriation of property against the Government of Nepal, a Provincial Government, a Local Level, or an organized institution wholly or substantially owned or controlled by the Government of Nepal, a Provincial Government or a Local Level, (g) An offense under section 158, (h) Offenses relating to marriage under Chapter 11 of Part 2, (i) An offense of adulteration of food or medicine with the intention of importing into Nepal, (j) Offenses relating to medical treatment under sections 231, 232 and 233, (k) An offense under Chapter 2 of Part 3. 3.

Definition: Unless the subject or context otherwise requires, in this Act, - (a) "Court" means the Supreme Court, High Court or District Court, and the term also includes a court, other judicial body or official having jurisdiction under the law to conduct proceedings and adjudicate specific types of criminal cases. (b) "Harboring" means providing a person with food, drink, shelter, cash, goods, clothing, weapons or means of conveyance, or assisting in evading arrest or providing other assistance. (c) "Offense" means an act punishable under this Code or by law. (d) "Law" means the law in force for the time being. (e) "Act" means a series of acts, and the term also includes an omission to do what is required by law to be done, or the doing of what is prohibited by law. (f) "Serious Offense" means an offense punishable with imprisonment for more than three years up to ten years. (g) "Heinous Offense" means an offense punishable with life imprisonment or imprisonment for more than ten years. (h) "Life" means the life of a human being. (i) "Judge" means an officer of the court conducting proceedings, hearing and adjudicating a case, and the term also includes an authorized official having jurisdiction to conduct proceedings, hear and adjudicate specific types of criminal cases. (j) "Public Servant" means any of the following persons: (1) A person elected, nominated or appointed to a position of public responsibility pursuant to the Constitution or other law, (2) A person appointed to the service of the Government of Nepal or a Provincial Government or any other government service pursuant to law or contract, amended by the Act to Amend Some Nepal Acts Relating to National Code, 2075 (2018). (3) A person elected, nominated or appointed to any position or service of a Local Level or District Coordination Committee, (4) An office bearer of an organized institution wholly or substantially owned or controlled by the Government of Nepal, a Provincial Government or a Local Level, or a person appointed to the service of such institution, or (5) A person otherwise appointed or holding a position of public responsibility. (k) "Local Level" means a Rural Municipality or a Municipality. (l) "Organized Institution" means an institution established pursuant to any law or registered under any law. (m) "Constitution" means the Constitution of Nepal. (n) "Public Document" means any of the following documents: (1) A document passed by the Legislature, (2) A document existing as a record of an official act performed by the President pursuant to the Constitution, Added by the Act to Amend Some Nepal Acts Relating to National Code, 2075 (2018). (2a) A document existing as a record of an official act performed by the Provincial Chief pursuant to the Constitution, (3) A document issued by, or any book, register or other document maintained as a record in, an office under the Government of Nepal, a Provincial Government, a Local Level, or a constitutional body or office holder, a court or an institution established by an Act or order, or an organized institution wholly or substantially owned or controlled by the Government of Nepal, Added by the Act to Amend Some Nepal Acts Relating to National

Code, 2075 (2018). (3a) Any document issued pursuant to federal, provincial or local law, (4) A judgment, decision or order issued by a court.

4. Principles and Provisions Generally Applicable: amended by the Act to Amend Some Nepal Acts Relating to National Code, 2075 (2018). The principles and provisions under Chapters 2, 3, 4 and 5 of Part 1 of this Code shall generally apply in relation to offenses under amended by the Act to Amend Some Nepal Acts Relating to National Code, 2075 (2018). this Code and other Acts. 5. Provisions of Special Act to Apply: If any specific act is deemed a separate offense and made punishable by any special Act, that Act shall apply in relation to such offense. Chapter - 2

General Principles of Criminal Justice

6. Act Done According to Law Not an Offense: An act required to be done by law, or deemed excusable by law, shall not be considered an offense. 7. No Punishment Except According to Law: No person shall be liable to punishment for an act which is not punishable by law, and no person shall be punished more severely than prescribed by law for the offense at the time it was committed. 8. Act Done Under Mistake of Fact Not an Offense: Any act done in good faith under a mistake of fact, with the belief that it was required or excusable by law, shall not be considered an offense. Provided, however, that an act done in ignorance of the law shall not be excusable. 9. No Double Punishment for Same Offense: No person shall be prosecuted and punished more than once in court for the same offense. 10. No Deprivation of Fair Hearing: No person shall be deprived of a fair hearing in proceedings conducted by a competent court or judicial body. 11. No Compulsion to be Witness Against Self: A person accused of an offense shall not be compelled to be a witness against himself/herself. 12. Not Considered Guilty Until Offense Proved: A person accused of an offense shall not be considered guilty until such offense is proved. 13. Act Done by Child Not an Offense: Any act done by a child who has not attained the age of ten years shall not be considered an offense. 14. Act Done by Person Not in Sound Mind Not an Offense: Any act done by a person who, at the time of doing the act, by reason of mental unsoundness, is not in a sound state of mind such that he/she cannot understand the nature, quality, wrongfulness or consequences of the act, shall not be considered an offense. 15.

Act Done with Consent Not an Offense: Except in cases done with the intention of causing death or grievous hurt, or done with the knowledge that death or grievous hurt is likely to be caused, if any act done by a person with the consent of a person above the age of eighteen years causes any harm to the person giving such consent, that act shall not be considered an offense. 16. Act Done for Benefit with Consent Not an Offense: If any act done by a person in good faith and with due care, with the consent of a person for the benefit of that person, causes harm to the person giving such consent, that act shall not be considered an offense. 17. Act Done for Benefit with Guardian's Consent Not an Offense: If any act done in good faith and with due care by the guardian of a person who has not attained the age of eighteen years or who, by reason of mental unsoundness, is not in a sound state of mind, or by any other person with the consent of such guardian, for the benefit of such person, causes any harm to such person, that act shall not be considered an offense. Provided, however, that a person who knowingly does any such act with the knowledge that death or grievous hurt is likely to be caused shall not escape criminal liability, except where done with the intention of preventing death or grievous hurt. 18. Act Done for Benefit Without Consent Not an Offense: If, in a situation where an act must be done immediately for the benefit of a person, and that person is for some reason unable to give consent immediately, and a guardian capable of giving consent on his/her behalf is also not immediately available, an act done in good faith and with due care for his/her benefit without obtaining consent causes any loss, harm or damage to that person, such act shall not be considered an offense. Explanation: For the purposes of sections 16, 17 and this section, "benefit" shall not mean: (a) A financial

gain obtained, (b) An act done with the intention of causing death or causing grievous hurt without reasonable cause. 19. Act Considered an Offense Even if Done with Consent: Notwithstanding anything written in sections 15, 16 or 17, if the act written in those sections is considered another offense under the law, such act, even if done with consent, shall be considered an offense. 20. Consent: Consent may be expressed orally, in writing, or by gesture or conduct.

Provided, however, that consent given in the following circumstances shall not be considered consent: (a) Where a person gives consent under a mistake of fact, or under fear or terror of harm or damage of any kind, and the person doing the act according to such consent knows that the consent was given in such a manner, or has reasonable cause to believe so, (b) Where a person gives consent while not in a sound state of mind due to mental unsoundness such that he/she cannot understand the nature, quality and consequences of the consent given, (c) Where consent is given by a child who has not attained the age of eighteen years, (d) Where consent is given under undue influence. 21. Act Causing Harm by Information Given in Good Faith Not an Offense: If any information or notice given by a person in good faith to another person for his/her benefit causes any harm to that person, that act shall not be considered an offense. 22. Act Done Under Duress Not an Offense: (1) If a person, carrying a dangerous weapon or poisonous or explosive substance, shows fear to another person that if he/she does not immediately do a certain act, he/she or his/her near relative will be killed or suffer bodily harm, and there is reasonable cause for that person to believe that unless he/she immediately does that act, there is a danger of death or bodily harm to himself/herself or his/her near relative, the act done by that person shall not be considered an offense. Provided, however, that such act shall be considered an offense in the following circumstances: (a) Where homicide or grievous hurt is caused, (b) Where rape is committed, (c) Where an offense against the state is committed, or (d) Where the person doing the act has himself/herself reached the situation of such fear or terror due to his/her own act or omission. (2) A person who causes an offense to be committed by creating fear or terror under Sub-section (1) shall be punished according to law as if he/she had committed such offense himself/herself. 23.

Act Done in Good Faith to Prevent Other Harm or Loss Not an Offense: If it is certain that unless an act causing some harm or loss to someone is done immediately, a greater harm or loss will occur to the body, life or property of oneself or another, and without criminal intent and with the intention of preventing or averting the probable greater harm or loss, such act causing harm or loss is done in good faith, such act shall not be considered an offense merely because it was done knowingly that harm might be caused. 24. Act Done for Private Defense Not Considered an Offense: (1) Subject to this Chapter, any act done while exercising the right of private defense shall not be considered an offense. (2) Every person shall have the right to protect his/her own body, life or property, or that of any other person, from any unlawful harm. (3) While exercising the right of private defense under this section, it shall be exercised only if there is reasonable amended by the Act to Amend Some Nepal Acts Relating to National Code, 2075 (2018).belief, or reasonable cause to believe, that unless an act is done immediately, the body, life or property of oneself or another cannot be protected from unlawful harm. 25.

Restriction on Right of Private Defense: (1) Notwithstanding anything written in section 24, the right of private defense shall not be available in the following circumstances or against the following acts: (a) Where, at the time of an act causing unlawful harm to someone's body or property, protection or assistance of a public authority is immediately available or could be available to protect against such harm, (b) Where the harm to the body or property is caused by the very person whose body or property is harmed having provoked the person causing the harm, (c) Where a public servant in good faith does an act pursuant to a judgment or

order of a court, (d) Where a public servant in good faith does any act in the exercise of his/her official authority, (e) Where a person does any act in good faith following a direction given by a public servant in the exercise of his/her official authority. (2) Notwithstanding anything written in Sub-section (1), a person shall not be deprived of the right of private defense in the following circumstances: (a) If there is no knowledge or reasonable cause to believe that the person doing the act referred to in clause (c) of Sub-section (1) is a public servant and is acting pursuant to a court judgment or order; or if, upon requesting, such person does not reveal his/her identity or show the warrant of authority for doing such act, (b) If there is no knowledge or reasonable cause to believe that the person doing the act referred to in clause (d) of Sub-section (1) is a public servant, (c) If there is no knowledge or reasonable cause to believe that the person doing the act referred to in clause (e) of Sub-section (1) is acting under the direction of a public servant; or if such person does not inform that he/she is about to do such act under such direction; or if, upon requesting, does not show the warrant of authority for doing such act where such a warrant exists. (3) While exercising the right of private defense under section 24 or this section, no more force than is reasonably necessary for such defense shall be used. 26.

No Right to Take Life: (1) While exercising the right of private defense under this Chapter, no person shall have the right to take the life of another. (2) Notwithstanding anything written in Sub-section (1), subject to Sub-section (3) of section 25, if someone's life is lost while exercising the right of private defense in the following circumstances, such act shall not be considered an offense: (a) Where there is reasonable belief that unless immediate defense is made against an attack on oneself or another, the life of oneself or another will be lost, or oneself or another will suffer serious injury or grievous hurt, (b) Where there is reasonable belief that an attack is made with the intention of committing rape, or during or after the commission of rape, an act is immediately done by the victim, (c) Where a person is taken hostage or kidnapped with the intention of killing, demanding ransom for release, committing rape, or causing grievous hurt, (d) Where an attempt is made to damage any house, tent or vehicle used for human habitation, worship, prayer or storage of property, by surrounding it, using dangerous weapons, setting fire, or using explosive substances, (e) Where defense is required against the offense of dacoity, (f) Where a security personnel deployed by order of an authorized officer for the security of a person or the property of the Government of Nepal, Provincial Government, Local Level, or an organized institution wholly or substantially owned or controlled by the Government of Nepal, Provincial Government or Local Level, or public property, is required to immediately counter an attack against such person or property. 27. Trivial Harm or Loss Not an Offense: Trivial harm or loss caused by a person of ordinary understanding shall not be considered an offense. 28. Punishment for Adult Causing Offense to be Committed by Child: If a person causes a child to commit an offense by enticing, teaching, or influencing the child, the person so causing the offense to be committed shall be punished as if he/she had committed such offense himself/herself. 29. Criminal Intent Not Examined in Strict Liability Offenses: In an offense which carries strict criminal liability under this Code or law, whether such offense was committed intentionally or not shall not be examined. 30.

Criminal Liability of Person Doing or Causing Act in Offense by Organized Institution: If a firm, company or organized institution does or causes to be done any act which is considered an offense under this Code or law, the person who did or caused such act shall be liable; and if such person cannot be identified, in the case of a firm, the relevant owner or partners, and in the case of a company or organized institution, the director, managing director, general manager who did or caused such act; and if such person also cannot be identified, the executive head of such institution shall bear criminal liability. 31. All Members Punishable for Offense Committed by Group: If an offense is committed by a group of two or more persons, all members of that group shall be punished for such offense. 32. Right of Crime Victim to Information of Case Proceedings

and Compensation: (1) A crime victim shall have the right to receive information relating to the investigation and proceedings of the case in which he/she is the victim. (2) A crime victim shall have the right to obtain justice, including social rehabilitation and compensation, according to law. Chapter- 3 Criminal Conspiracy, Attempt, Abetment and Accessory 33.

Not to Commit Criminal Conspiracy: (1) No person shall commit a criminal conspiracy. (2) If two or more persons agree to commit or cause the commission of an offense, and amended by the Act to Amend Some Nepal Acts Relating to National Code, 2075 (2018).one person or two or more persons perform any act, they shall be deemed to have committed a criminal conspiracy. (3) A person who commits or causes a criminal conspiracy for a heinous or serious nature of offense shall be punished as follows, if separate punishment is provided elsewhere in this Code, according to that provision, and if not provided, as follows: (a) If the offense has been committed as per the conspiracy, the same punishment as for committing such offense, (b) If an offense other than the one conspired has been committed, and if such other offense was committed in the course of implementing the conspiracy or as a probable consequence thereof, the punishment applicable for such offense, (c) If, in addition to the offense conspired, another offense has also been committed, and if such offense was also committed in the course of implementing the same conspiracy or as a probable consequence thereof, additional punishment for such offense as well, (d) If the act of conspiracy has not been completed, half of the punishment applicable for such offense. 34. Not to Attempt to Commit Offense: (1) No person shall attempt to commit an offense. (2) Even if it is impossible for the offense which was attempted to occur, it shall be deemed an attempt. (3) Except where otherwise provided in this Code, a person who attempts or causes an attempt to commit an offense shall be liable to half of the punishment prescribed for such offense. 35. Not to Abet: (1) No person shall abet another to commit an offense. (2) For the purpose of Sub-section (1), if a person incites another to commit an offense, he/she shall be deemed to have abetted. (3) A person who abets shall be punished as follows, if separate punishment is provided in this Code, according to that provision, and if not provided, as follows: (a) If the offense has been committed as abetted, the same punishment as if he/she had committed the offense himself/herself, (b) If the offense has not been committed as abetted, half of the punishment prescribed for such offense. (4) If a person is abetted to commit one offense, and that person commits another offense as an effect or probable consequence of such abetment, the person abetting shall be punished for such other offense as well as if he/she had committed it himself/herself. 36.

Not to be Accessory: (1) No person shall be an accessory to an offense. (2) A person who, with the intention of committing an offense, assists in committing that or another offense, or after the commission of the offense, helps the offender to escape or hide, or provides means for committing or causing the commission of the offense, or assists in any other manner, shall be deemed an accessory. (3) An accessory shall be punished as follows: (a) A person who, by being involved in a criminal conspiracy, commits the offense, provides means or place, deprives the person against whom the offense is committed of the right of private defense, or orders or advises the commission of the offense, shall be punished as if he/she had committed such offense, (b) In the case of an accessory other than those written in clause (a), according to the degree of his/her involvement in the act by which the offense was committed, up to a maximum of half of the punishment applicable for committing such offense. 37. Limitation Period to Apply: The limitation period for filing a complaint provided in this Code in relation to any offense shall also apply in relation to the conspiracy, attempt, abetment or being accessory to such offense. Chapter- 4 Circumstances Aggravating and Mitigating the Severity of Offense 38.

Circumstances Aggravating Severity of Offense: For the purposes of this Code, if the following circumstances

exist, the severity of the offense shall be deemed to be aggravated: (a) The offense is committed against the President, Head of Government, or Head of a Foreign State, (b) The offense is committed in the presence of the President, Head of Government, or Head of a Foreign State, (c) The offense is committed by abusing trust, (d) The offense is committed by taking advantage of or abusing a public position, (e) The offense is committed by a person holding a public office with the intention of obstructing such person in the discharge of official duties or causing such person to do an unlawful act, (f) The offense is committed in a government office, public office, or place of worship, (g) The offense is committed by a group of five or more persons, (h) The offense is committed by taking advantage of a disruption of public peace, flood, landslide, earthquake or similar natural disaster, epidemic, famine, or any other crisis of similar nature, (i) The offense is committed while carrying or using a weapon or poisonous or explosive substance, or by passing electric current or using electrical equipment, or with the help of a person carrying a weapon or poisonous or explosive substance, Added by the Act to Amend Some Acts Relating to Criminal Offenses and Criminal Procedure, 2079 (2022).(i1) The offense is committed by throwing or using acid, other dangerous chemicals, or flammable substances on a person, or forcing a person to consume them, (j) The offense is committed again by an offender who has already been punished with imprisonment once, (k) The offense is committed after receiving a reward, assurance or amended by the Act to Amend Some Nepal Acts Relating to National Code, 2075 (2018).benefit, or being enticed by the prospect of obtaining a benefit, (l) The offense is committed against a person under one's protection or control, or against property under one's responsibility, (m) The offense is committed by amended by the Act to Amend Some Nepal Acts Relating to National Code, 2075 (2018).inflicting torture or cruel, inhuman or degrading treatment, (n) More than one offense is committed in a single incident, (o) The offense is committed against more than one person in a single incident, (p) The offense is committed by kidnapping a person or taking a person hostage, (q) The offense is committed against a person in prison, custody, detention or control, (r) The offense is committed by a person having a duty to protect someone against the person he/she is supposed to protect, (s) The offense is committed with the intention of genocide to Added by the Act to Amend Some Nepal Acts Relating to National Code, 2075 (2018).destroy the very existence of any caste, race or community, (t) The offense is committed with the intention of creating hatred against any caste, race, religious or cultural community, (u) An offense against humanity is committed, (v) The offense is committed in a planned or organized manner, (w) The offense is committed against a person who, due to old age over seventy-five years, or physical or mental unsoundness, or disability, is not in a position to defend himself/herself, or against a child, (x) The offense is committed amended by the Act to Amend Some Nepal Acts Relating to National Code, 2075 (2018).while engaged in rescue work during a vehicle or aircraft accident or natural disaster, (y) The same offender commits another offense against a person who has already been a victim of an offense once.

39. Circumstances Mitigating Severity of Offense: For the purposes of this Code, if the following circumstances exist, the severity of the offense shall be deemed to be mitigated:

- (a) The age of the offender is less than eighteen years or more than seventy-five years,
- (b) The offender did not have the intention to commit the offense,
- (c) The person against whom the offense was committed provoked or threatened the offender immediately before the offense,
- (d) The offense was committed immediately as a reaction to a serious offense committed against the offender or any of his/her near relatives,
- (e) The offender voluntarily confessed to the offense or expressed remorse for committing such offense,
- (f) The offender surrendered to the relevant authority,
- (g) The offender, having confessed to the offense, has already provided or agreed to provide compensation

to the victim,

(h) The capacity of the offender was diminished due to physical, mental, or disability reasons,

(i) The degree of harm or loss caused to the victim party and society is not significant,

(j) The offender has assisted the judicial process by stating the truth in court,

(k) The offender has confessed to the offense and expressed a commitment not to commit criminal offenses in the future,

(l) The offense was committed due to someone's persuasion or pressure. Chapter- 5

Provisions Relating to Punishment and Interim Compensation

40. Types of Punishment: (1) The punishment for an offense mentioned in this Code shall be as follows:

(a) Life imprisonment,

(b) Imprisonment,

(c) Fine,

(d) Imprisonment and fine,

(e) Compensation,

(f) Imprisonment in lieu of non-payment of fine or compensation,

(g) Reform home or community service in lieu of imprisonment.

(g) Reform home or community service in lieu of imprisonment. amended by the Act to Amend Some Nepal Acts Relating to National Code, 2075 (2018).

(2) If, under any law, the punishment for an offense is forfeiture of property, after the commencement of this Code, no punishment involving forfeiture of property shall be imposed for such offense.

(3) Notwithstanding anything written elsewhere in this section, no punishment of a fine less than one rupee and imprisonment of less than one day shall be imposed. 41.

Life Imprisonment: Notwithstanding anything written elsewhere in this Code, when awarding life imprisonment to an offender who commits any of the following offenses, such offender shall be imprisoned for the duration of his/her natural life: (a) Homicide committed with cruel torture or ruthlessly, (b) Homicide committed by hijacking an aircraft or exploding an aircraft, (c) Homicide committed after kidnapping or taking hostage, (d) Homicide committed by poisoning beverages or food items for public consumption, (e) Genocide committed with the intention of amended by the Act to Amend Some Nepal Acts Relating to National Code, 2075 (2018).destroying the very existence of any caste, race or community, or an offense committed with the intention of genocide, or (f) Homicide committed after rape. 42. Calculation of Life Imprisonment: Except in the circumstances mentioned in section 41, when calculating the sentence of life imprisonment, it shall be calculated as imprisonment for twenty-five years. 43. Additional Punishment for Integrated Offense: (1) If a person commits more than one offense in a single incident, that person shall be deemed to have committed an integrated offense. (2) When punishing an offender who commits an integrated offense under Sub-section (1), the punishment shall be the punishment for the offense carrying the highest punishment, plus half of the punishment for the next offense carrying the maximum punishment. Provided, however, that this Sub-section shall not apply in the case of an offender facing life imprisonment. 44. Additional Punishment: (1) If a person who has been punished for a heinous or serious offense commits another offense, he/she shall be liable to punishment up to double the punishment for the subsequently committed offense. Provided, however, that this section shall not apply in the case of an offender sentenced to life imprisonment. (2) If a person punished for an offense other than those under Sub-section (1) commits another offense within five years of completing such punishment, he/she shall be liable to punishment up to double the punishment for the subsequently committed offense. 45.

Punishment to Children: (1) If the age of a person doing an act that constitutes an offense under law has not reached ten years at the time of doing such act, he/she shall not be punished. amended by the Act to Amend Some Nepal Acts Relating to National Code, 2075 (2018). (2) If a person aged ten years or above but less than fourteen years commits an offense punishable by fine under law, he/she shall be admonished without imposing a fine; and if he/she commits an offense punishable by imprisonment, he/she may be punished with imprisonment for up to six months, depending on the offense, or may be kept in a reform home for up to one year without imprisonment. (3) If a person aged fourteen years or above but less than sixteen years commits deleted by the Act to Amend Some Nepal Acts Relating to National Code, 2075 (2018) any offense, he/she shall be liable to half of the punishment that would be imposed on a person of full age according to law. (4) If a person aged sixteen years or above but less than eighteen years commits deleted by the Act to Amend Some Nepal Acts Relating to National Code, 2075 (2018) any offense, he/she shall be liable to two-thirds of the punishment that would be imposed on a person of full age according to law. Added by the Act to Amend Some Nepal Acts Relating to National Code, 2075 (2018). (5) Notwithstanding anything written in Sub-sections (2), (3) and (4), when punishing a child who has not completed the age of sixteen years, a sentence of imprisonment shall not be imposed except for a heinous offense, a serious offense, or where the offense has been committed repeatedly. 46. **Imprisonment for Fine:** amended by the Act to Amend Some Nepal Acts Relating to National Code, 2075 (2018). (1) The fine imposed on an offender shall be recovered from his/her property.

If he/she has no property, or if the amount of the fine cannot be recovered from him/her, he/she may be imprisoned. (2) When determining imprisonment under Sub-section (1), it shall be done as follows: (a) In an offense (b) If the offence is under clause (b), in addition to the punishment for causing physical injury or assault under this Code, imprisonment for up to five years and a fine of up to fifty thousand rupees, (c) If the offence is under clause (c), (d) or (e), imprisonment for up to ten years. (4) If an offence under this Section is committed by the order or instruction of a person or any organized or unorganized group, the person giving such instruction or the person or persons responsible for such group shall be punished as the principal offender. (5) If an offence under this Section is committed collectively or with the involvement of various persons, each person involved in such offence shall be deemed equally guilty. (6) If any person committing an offence under this Section holds a public office, such person shall not be entitled to claim that the offence occurred in the course of obeying the order of a superior officer, or maintaining law and order, or enforcing the law, and such person shall not be exempted or immune from punishment on the basis of such claim. 53.

Not to wage war against Nepal or assist the army of a state engaged in war with Nepal: (1) No person shall take up arms and wage war against Nepal, or declare war, attempt or threaten to wage war, or collect arms and ammunition with the intent to wage war against Nepal, or create a military or paramilitary organization. (2) No person shall, whether or not a state of war has been declared, give any kind of strategic or military information to, or assist in any other manner, or attempt to do so, any foreign army engaged in war with Nepal. (3) If the Government of Nepal has declared that no relation or transaction may be maintained, and no goods or services may be imported or received, with a state engaged in war with Nepal, the citizens or organized institutions of such state, no person shall maintain such relation or transaction, or import or receive such goods or services, with such state, citizen or institution. (4) A person who commits or causes to commit an offence under sub-section (1) or (2) shall be liable to life imprisonment, and a person who commits or causes to commit an offence under sub-section (3) shall be liable to imprisonment for up to twenty-five years and a fine of up to one hundred and fifty thousand rupees. 54. **Not to wage war or rebellion against a friendly nation:** (1) No person shall, using the land of Nepal, take up arms and wage war, threaten or attempt to wage war, or rebel or attempt to rebel against a friendly nation having diplomatic relations with Nepal. (2) A person

who commits or causes to commit an offence under sub-section (1) shall be liable to imprisonment for up to seven years and a fine of up to seventy thousand rupees. 55. Not to incite military or police personnel: (1) No person shall encourage or incite any soldier, police officer or constable, or Armed Police Force personnel or officer serving in the Nepali Army, Nepal Police or Armed Police Force, Nepal to desert or abscond, or to breach discipline, or attempt to divert them from their duty, or knowingly or having reason to believe that a person has deserted from the army, police or force, give shelter to such person. (2) A person who commits or causes to commit an offence under sub-section (1) shall be liable to imprisonment for up to ten years and a fine of up to one hundred thousand rupees. 56.

Not to engage in espionage: (1) No person shall, with the intent to undermine the sovereignty, security or geographical or territorial integrity of Nepal or to cause any adverse effect on the interests of Nepal, or knowing that such may occur, or being induced by a foreign state or international organization or institution, give information to any person concerning the military position, strategic arrangement or internal security of Nepal, or matters that the Government of Nepal needs to keep confidential from a political, economic or diplomatic perspective, or confidential documents or matters that are or must be kept confidential by law, or conspire, attempt, encourage or do any other act with the intent to give such information, and if done, it shall be deemed espionage. (2) A person who commits or causes to commit espionage under sub-section (1) shall be punished as follows:- (a) A person who commits or causes to commit espionage concerning the military position, strategic arrangement or internal security of Nepal shall be liable to imprisonment for up to twenty-five years, (b) A person who commits or causes to commit espionage concerning matters that the Government of Nepal needs to keep confidential from a political, economic or diplomatic perspective, or any other confidential document, shall be liable to imprisonment from five to ten years, (c) A person who commits or causes to commit espionage concerning matters other than those mentioned in clauses (a) and (b) shall be liable to imprisonment for up to five years and a fine of up to Amended by the Act Amending Certain Nepal Acts Relating to the Civil Code, 2018.fifty thousand rupees, (d) A person who, knowing that espionage is about to be committed, fails to inform the Government of Nepal of such matter, shall be liable to imprisonment for up to one year and a fine of up to Amended by the Act Amending Certain Nepal Acts Relating to the Civil Code, 2018.one hundred thousand rupees. 57. Not to attack the President: (1) No person shall kill or attempt to kill the President of Nepal. (2) No person shall kidnap or cause to kidnap, or take or cause to take the person of the President of Nepal as hostage in any manner. (3) No person shall attack or cause to attack the President of Nepal in any manner. (4) A person who commits an offence under this Section shall be punished as follows:- (a) If the offence is under sub-section (1), life imprisonment, (b) If the offence is under sub-section (2), imprisonment from ten to fifteen years, (c) If the offence is under sub-section (3), imprisonment from five to ten years. 58.

Not to threaten the President or Parliament: (1) No person shall, in order to prevent or deprive the President of Nepal or Parliament from performing any act required to be done under the Constitution or law, or to compel them to perform an act in a particular manner, threaten in any manner, with or without the use of force, cause fear or terror, or exert pressure in any other way. (2) A person who commits or causes to commit an offence under sub-section (1) shall be liable to imprisonment for up to seven years or a fine of up to seventy thousand rupees or both. Explanation: For the purpose of this Section, "Parliament" means the Federal Parliament and Provincial Assembly under the Constitution of Nepal, and that term also denotes the Legislature-Parliament. 59. Limitation: (1) Complaints may be lodged at any time for offences under Sections 49, 50, 51, 52, 53 and 57. (2) For offences under other Sections of this Chapter other than those mentioned in sub-section (1), no complaint may be lodged after the expiry of two years from the date of knowledge of such offence. Chapter-2 Offences against Public Peace 60. Not to engage in an unlawful assembly: (1) No

person shall engage in an unlawful assembly. (2) An assembly of five or more persons for the purpose of doing any of the following acts shall be deemed an unlawful assembly:- (a) By using or displaying force or by displaying dangerous weapons, (1) to prevent a public servant from doing work prescribed by law or performing a duty, (2) to take or seize the property of anyone, (3) to deprive anyone of the right to use a road, water, public transport or communication or any other similar thing, (4) to compel any person to do what the law does not permit or prevent them from doing what the law permits. (b) To obstruct or hinder the implementation of any law or legal proceeding, (c) To commit any offence punishable with imprisonment. (3) If a person participates in such an assembly knowing that it is an unlawful assembly, if participating without weapons, such person shall be liable to imprisonment for up to six months and a fine of up to five thousand rupees, and if participating with weapons, imprisonment for up to one year or a fine of up to ten thousand rupees or both. (4) If any person, without participating themselves, pays wages to another or induces or pressures them in any other manner to participate in an unlawful assembly, such person shall be deemed to have themselves participated in such unlawful assembly and shall be punished under sub-section (3). 61.

Not to violate an order to prevent or disperse an unlawful assembly: (1) If an authorized officer orders to prevent or disperse an unlawful assembly, no person shall remain in or participate in such assembly. (2) A person who remains in, participates in, or comes to participate in an unlawful assembly under sub-section (1) shall be liable to imprisonment for up to one year or a fine of up to ten thousand rupees or both. 62. Each member deemed to have committed the offence: If any member of an unlawful assembly commits an offence to achieve the objective of such assembly, each member of that assembly who knowingly assists in committing such offence at the time it is committed shall be deemed to have committed that offence. 63. Not to commit rioting: (1) No person shall commit or cause rioting. (2) If an unlawful assembly or a participant in such assembly uses force in the course of achieving the objective of the assembly, or causes damage, destruction or loss to public or private property, each participant in such assembly shall be deemed to have committed rioting. (3) Every person who commits an offence under sub-section (1) shall, if carrying dangerous weapons, be liable to imprisonment for up to two years and a fine of up to twenty thousand rupees, and if not carrying dangerous weapons, imprisonment for up to one year and a fine of up to ten thousand rupees. 64. Not to incite rioting: (1) No person shall, with the intent to cause rioting or knowing that rioting may occur, encourage any person to commit rioting. (2) A person who incites under sub-section (1) shall, if rioting has occurred, be liable to imprisonment for up to one year, and if rioting has not occurred, imprisonment for up to six months, or a fine of up to five thousand rupees, or both. 65. Not to disturb public peace: (1) No person shall, by writing, speech, shape or sign, or in any other manner, on the basis of religion, colour, caste, ethnicity, sect or language, do any act that disturbs harmonious relations among persons of different classes, regions or communities in Nepal. (2) A person who commits or causes to commit an offence under sub-section (1) shall be liable to imprisonment for up to one year and a fine of up to ten thousand rupees. (3) If an offence under sub-section (1) is committed at a place of worship, prayer, or where a religious or cultural festival or ceremony is taking place, in addition to the punishment under sub-section (2), imprisonment for up to one year shall be imposed. 66.

Not to obstruct a public servant: (1) When a public servant, in the course of performing their duty, does any act to prevent or disperse an unlawful assembly or prevent rioting, no person shall obstruct or oppose, or attempt to obstruct or oppose. (2) A person who commits or causes to commit an offence under sub-section (1) shall be liable to imprisonment for up to one year or a fine of up to ten thousand rupees or both. 67. Not to obstruct movement in a public place: (1) No person shall, by creating any kind of fear, terror or intimidation, close a public road, thoroughfare, ropeway, cable car route, airport, railway or waterway, or the operation of postal or any public service, or obstruct a public road, thoroughfare, ropeway, cable car route, airport, railway

or waterway in any manner, thereby obstructing the movement of pedestrians, vehicles or animals, or obstruct or prevent anyone from entering a public place in any manner except by order of an authorized officer under the law. (2) A person who commits or causes to commit an offence under sub-section (1) shall be liable to imprisonment for up to three years or a fine of up to thirty thousand rupees or both. 68. Not to disrupt a public service: (1) No person shall, by creating any kind of Amended by the Act Amending Certain Nepal Acts Relating to the Civil Code, 2018.fear or terror, close or disrupt in any manner the operation of public electricity, telecommunications, or other public services of a similar nature, or public services provided by law. (2) A person who commits or causes to commit an offence under sub-section (1) shall be liable to imprisonment for up to three years or a fine of up to thirty thousand rupees. 69. Not to violate curfew: (1) No person shall knowingly violate a curfew order issued by an authorized officer under the law to prevent an unlawful assembly, rioting, or any other act causing disturbance of peace. (2) A person who commits or causes to commit an offence under sub-section (1) shall be liable to imprisonment for up to one year or a fine of up to ten thousand rupees or both. 70.

Not to spread false rumours: (1) No person shall, with the intent to disturb public peace, incite rioting, or undermine the sovereignty, geographical or territorial integrity of Nepal, or disrupt harmonious relations among various castes, ethnicities or sects, spread, propagate, or make processions with slogans about falsehoods that are not true in order to incite anyone. (2) A person who commits or causes to commit an offence under sub-section (1) shall be liable to imprisonment for up to one year Amended by the Act Amending Certain Nepal Acts Relating to the Civil Code, 2018.or a fine of up to ten thousand rupees or both. 71. Not to provide house, land or vehicle for disturbing peace: (1) If any person knows or has reasonable cause to believe that another person is about to disturb public peace or commit rioting, no person shall provide such person with their house, land, vehicle or weapons. (2) A person who commits an offence under sub-section (1) shall be liable to imprisonment for up to six months or a fine of up to five thousand rupees or both. 72. Not to conduct torch processions in sensitive public areas: (1) No person shall, with the intent to disturb public peace, conduct or cause to conduct a torch procession, a procession carrying fire or flammable objects, or a meeting in any place designated as a sensitive public area by order of an authorized officer for reasons of Nepal's sovereignty, geographical or territorial integrity, security, public peace or decorum. (2) A person who commits an offence under sub-section (1) shall be liable to imprisonment for up to six months or a fine of up to five thousand rupees or both. 73.

Not to damage or destroy essential goods: Amended by the Act Amending Certain Nepal Acts Relating to the Civil Code, 2018.(1) No person shall, by committing any offence under this Chapter, cause or cause to cause harm, damage, destruction or arson to any property deemed an essential commodity by law or to public or private property, or spoil such property or property by using another person or by themselves. (2) A person who commits an offence under sub-section (1) shall, in addition to the punishment for the offence under this Chapter, be liable to imprisonment for up to one year or a fine of up to ten thousand rupees or both. (3) If loss or damage to such property or property has been caused by the offence under sub-section (1), compensation according to the amount of loss shall also be recovered from such person. (4) If the person committing the offence under sub-section (1) is identified, that person shall be deemed to have committed the offence, and if such person is not identified, the person who incited or ordered such act shall be deemed to have committed the offence. 74. Limitation: No complaint may be lodged for an offence under this Chapter after the expiry of three months from the date of such offence. Chapter-3 Offences relating to Disobedience to the Authority of a Public Official 75. Not to obstruct the service of summons, notices, etc.: (1) When serving a summons, notice, arrest warrant, information or order issued under the law, or conducting a search, seizure, survey, map or site inspection, or arresting someone under a warrant, no person shall obstruct or cause obstruction. (2) A person

who commits an offence under sub-section (1) shall be liable to imprisonment for up to six months or a fine of up to five thousand rupees or both. (3) If an offence under sub-section (1) is committed by a public servant, such person shall be subject to additional imprisonment for up to three months. 76. Not to refuse to receive a summons, notice, information or order: (1) If a person is brought a summons, notice, arrest warrant, information or order issued under the law in their name, that person shall not maliciously refuse to receive such summons, notice, arrest warrant, information or order. (2) A person who commits an offence under sub-section (1) shall be liable to imprisonment for up to three months or a fine of up to five thousand rupees or both. 77.

Not to evade service of summons, notice, information or order: (1) A person required to receive a summons, notice, arrest warrant, information or order issued by an authorized officer shall not maliciously evade service to avoid receiving such summons, notice, arrest warrant, information or order. (2) A person who commits an offence under sub-section (1) shall be liable to imprisonment for up to three months or a fine of up to five thousand rupees or both. 78. Not to tear down or remove summons, notices, etc.: (1) No person shall maliciously tear down or remove a summons, notice, arrest warrant, information or order posted under the law while its purpose is still pending. (2) A person who commits or causes to commit an offence under sub-section (1) shall be liable to imprisonment for up to six months or a fine of up to five thousand rupees or both. 79. Not to falsely effect service: (1) A person who has a duty to serve or cause to serve process under the law shall not falsely effect service. (2) A person who commits an offence under sub-section (1) shall be liable to imprisonment for up to one year or a fine of up to ten thousand rupees or both. 80. Not to refuse to produce a document: (1) A person who has a legal duty to produce or send a document before any office, court or public servant under the law shall not refuse to produce or send such document. (2) A person who commits an offence under sub-section (1) shall be liable to imprisonment for up to six months or a fine of up to five thousand rupees or both. 81. Not to make a false statement by a person who has taken an oath: (1) A person who has a legal duty to state the truth before an authorized officer or who has taken an oath, or a person who has taken an oath under the law and holds a public office, shall not, in that capacity, make a false statement. (2) A person who commits an offence under sub-section (1) shall be liable to imprisonment for up to two years or a fine of up to twenty thousand rupees or both. 82. Not to refuse to take an oath: (1) A person who appears before an authorized officer to state the truth shall not refuse to take an oath when ordered to do so for the purpose of making such statement. (2) A person who commits an offence under sub-section (1) shall be liable to imprisonment for up to three months or a fine of up to five thousand rupees or both. 83.

Not to refuse to answer: (1) A person who has a legal duty to state the truth on a matter before an authorized officer shall not refuse to answer a question put by such officer on that matter. Provided that no person shall be compelled to give a statement against themselves. (2) A person who commits an offence under sub-section (1) shall be liable to imprisonment for up to six months or a fine of up to five thousand rupees or both. 84. Not to provide false information: (1) No person shall give false information to any public servant with the intent to prevent such public servant from doing what the law requires them to do, or to cause them to do what they are not required or not permitted to do. (2) A person who commits an offence under sub-section (1) shall be liable to imprisonment for up to one year or a fine of up to ten thousand rupees or both. 85. Not to obstruct or oppose: (1) No person shall obstruct or oppose any public servant who is about to perform their official duty, by use of force, violence, or mob action, or in any other manner, hindering the performance of their duty. (2) No person shall knowingly obstruct or oppose the process of inventory, attachment, seizure, auction or sale of any property under the law. (3) A person who commits or causes to commit an offence under sub-section (1) or (2) shall be liable to imprisonment for up to one year or a fine of up to ten thousand rupees or both. 86. Not to refuse to assist a public servant: (1) When a public servant is performing their

official duty, a person who has a legal duty to assist in such work shall not refuse to provide assistance accordingly. (2) A person who commits an offence under sub-section (1) shall be liable to imprisonment for up to six months or a fine of up to five thousand rupees or both. 87. Not to disobey an order: (1) No person shall disobey an order of an authorized officer under the law by failing to do what is required by law to be done, or by doing what is not permitted to be done, thereby disobeying such order. (2) A person who commits an offence under sub-section (1) shall be liable to imprisonment for up to six months or a fine of up to five thousand rupees or both. 88.

Limitation: No complaint may be lodged for an offence under Sections 78, 80 and 83 of this Chapter after the expiry of three months from the date of knowledge of such offence, and for offences under other Sections, after the expiry of three months from the date of such offence. Chapter-4 Offences against Public Justice 89. Not to fabricate false evidence: (1) Except as otherwise provided in this Code, no person shall, with the intent to use as evidence in judicial or other legal proceedings, fabricate false evidence, create false circumstances, create any false document or electronic record, or record a false statement in any document or electronic record. (2) A person who commits or causes to commit an offence under sub-section (1) shall be liable to imprisonment for up to five years and a fine of up to fifty thousand rupees. Provided that if any person has been sentenced to life imprisonment on the basis of such false evidence, the punishment shall be imprisonment for up to seven years and a fine of up to seventy thousand rupees. (3) Notwithstanding anything elsewhere written in this Section, punishment under this Section shall not exceed the maximum punishment possible for the offence in relation to which the false evidence was fabricated. 90. Not to make or give a false certificate: (1) A person who has the authority or duty to submit, certify, authenticate, submit an affidavit or give a certificate regarding any matter under the law shall not knowingly submit, certify, authenticate or give a certificate containing false statements. (2) A person who commits or causes to commit an offence under sub-section (1) shall be liable to imprisonment for up to two years and a fine of up to twenty thousand rupees. 91. Not to use false evidence or certificate: (1) No person shall, knowing that any evidence or certificate is false, use or cause to use such evidence or certificate as true evidence or certificate. (2) A person who commits an offence under sub-section (1) shall be liable to imprisonment for up to three years and a fine of up to thirty thousand rupees. 92.

Not to destroy documents: (1) A person who has a legal duty to produce a document or electronic record as evidence in any judicial or other legal proceeding shall not knowingly destroy, mutilate to make it illegible, or otherwise render it unusable as evidence. (2) A person who commits or causes to commit an offence under sub-section (1) shall be liable to imprisonment for up to two years and a fine of up to twenty thousand rupees. (3) No person shall, contrary to law, knowingly destroy, mutilate to make it illegible, or otherwise render it unusable as evidence, or unlawfully remove, or unauthorizedly give to anyone, any document or electronic record produced in any judicial or other legal proceeding. (4) A person who commits or causes to commit an offence under sub-section (3) shall be liable to imprisonment for up to four years and a fine of up to forty thousand rupees. (5) If an offence under sub-section (1) or (3) is committed by a public servant, such person shall be liable to double the punishment mentioned in that sub-section. 93. Not to suppress evidence of an offence: (1) No person shall, with the intent to save an offender, suppress, destroy, or render unusable as evidence any evidence relating to the offence committed by such offender. (2) A person who commits or causes to commit an offence under sub-section (1) shall be liable to imprisonment for up to three years and a fine of up to thirty thousand rupees. 94. Not to obstruct giving information: (1) No person shall prevent or obstruct in any manner a person who has knowledge that an offence has been or is about to be committed, and who goes to give information or report about such offence to the police or an authorized officer. (2) A person who commits or causes to commit an offence under sub-section (1) shall be liable to imprisonment for

up to two years or a fine of up to twenty thousand rupees or both. 95. Not to shelter an offender: (1) No person shall, knowingly, with the intent to prevent an offender from being arrested or from receiving punishment under the law, give shelter to such offender.

Explanation: For the purpose of this Section, "offender" means a person who is suspected of an offence, accused, or convicted by a court. (2) A person who commits or causes to commit an offence under sub-section (1) shall be punished as follows:- (a) If shelter is given to an offender of an offence punishable with life imprisonment or imprisonment for up to twenty years, imprisonment for up to five years and a fine of up to fifty thousand rupees, (b) If shelter is given to an offender of an offence punishable with imprisonment for up to ten years, imprisonment for up to three years and a fine of up to thirty thousand rupees, (c) If shelter is given to an offender of an offence other than those mentioned in clause (a) or (b), imprisonment or fine up to one-fourth of the maximum imprisonment or fine possible for that offence, or both. (3) Notwithstanding anything written in sub-section (1), if shelter is given by the husband or wife, father, mother, son, daughter, elder brother, younger brother, elder sister, younger sister, grandfather, grandmother, grandson, granddaughter, mother-in-law, father-in-law, daughter-in-law or son-in-law of the offender, it shall not be deemed an offence under this Section. 96. Duty to give information of an offence: (1) A person who has a legal duty to give information of an offence, upon knowing that an offence has been or is about to be committed, shall not fail to give such information, and a person who has knowledge of an offence shall not knowingly give false information. (2) A person who commits an offence under sub-section (1) shall be liable to imprisonment for up to two years or a fine of up to twenty thousand rupees or both. 97.

Not to conceal property or make false claim to property: (1) No person shall, with the intent to prevent property that is subject to confiscation, attachment, inventory, seizure, auction or sale, or property that is to be handed over for enjoyment, or the right over such property or inventory, from being confiscated, attached, inventoried, seized, auctioned or sold, or from being enjoyed, as per the decision of a court or authorized officer, maliciously conceal such property or the right over it, transfer or cause to transfer it to someone, or make a claim over such property or right. (2) A person who commits or causes to commit an offence under sub-section (1) shall be liable to imprisonment for up to two years or a fine of up to twenty thousand rupees or both. 98. Not to file a false complaint: (1) No person shall, with the intent to cause harm or harassment to anyone, file a complaint or information against any person before an officer authorized to conduct judicial proceedings, making a false claim or accusation. (2) A person who commits or causes to commit an offence under sub-section (1) shall be liable to up to half the maximum punishment possible for the offence of which the false accusation was made. Provided that this Section shall not apply to cases on behalf of the Government of Nepal. (3) If the victim of an offence under sub-section (1) has suffered any loss or damage, compensation for that shall be recovered from the offender and paid to the victim. 99. Not to conduct malicious investigation or prosecution: (1) An officer responsible for investigation or prosecution under the law shall not, with the intention of framing an innocent person or protecting the actual offender, maliciously conduct an investigation or bring a charge. (2) A person who commits or causes to commit an offence under sub-section (1) shall be liable to imprisonment for up to six months or a fine of up to five thousand rupees or both. (3) If any person has suffered any loss or damage from an offence under sub-section (1), such person may recover compensation from the offender. 100. Not to remain absent contrary to bail conditions: (1) A person released on bail for an accusation of an offence shall not, without reasonable cause, remain absent from the office or court where bail was given, contrary to the conditions of bail.

Explanation: For the purpose of this Section, "bail" means cash, Amended by the Act Amending Certain Nepal Acts Relating to the Civil Code, 2018.guarantee, bank guarantee or personal bond. (2) A person who

commits an offence under sub-section (1) shall be liable to imprisonment for up to one year or a fine of up to ten thousand rupees or both. (3) If a person who remains absent under this Section is convicted of the offence with which they were charged, the punishment under this Section shall be added to the punishment for that offence. (4) If a person released on personal bond under the law fails to appear before the office or court according to such bond, the person providing such personal bond shall be liable to a fine of up to fifty thousand rupees. (5) A person punished under this Section shall not be eligible for personal bond for up to three years. 101. Not to resist arrest or escape from custody: (1) If an arrest warrant has been issued under the law to arrest a person, such person shall not knowingly use force to resist arrest during the process of arrest or when being arrested, or if already arrested, to avoid arrest; and a person in lawful custody shall not escape or attempt to escape from custody. (2) A person who commits or causes to commit an offence under sub-section (1) shall be liable to imprisonment for up to three years or a fine of up to thirty thousand rupees or both. 102. Not to rescue from arrest or aid escape from custody: (1) No person shall knowingly obstruct or oppose the rescue of a person for whom an arrest warrant has been issued under the law during the process of arrest or at the time of arrest, or if such person has already been arrested, knowingly aid in their escape or help them to escape from lawful custody. (2) A person who commits or causes to commit an offence under sub-section (1) shall be liable to imprisonment for up to three years or a fine of up to thirty thousand rupees or both. (3) If an offence under sub-section (1) is committed or caused by a public servant, such person shall be liable to double the punishment mentioned in sub-section (2). 103.

Limitation: (1) Complaints may be lodged at any time for offences under Section 101 or 102. (2) For an offence under Section 100, no complaint may be lodged after the expiry of three months from the date of such offence, and for other offences under this Chapter, no complaint may be lodged after the expiry of three months from the date of knowledge of such offence. Chapter-5 Offences against Public Interest, Health, Safety, Convenience and Morality 104. Not to spread infectious disease: (1) No person shall spread or do any act that may spread any kind of infectious disease that can endanger the life of another. (2) A person who commits or causes to commit an offence under sub-section (1) shall, if done intentionally or knowingly, be liable to imprisonment for up to ten years and a fine of up to one hundred thousand rupees; if done negligently, imprisonment for up to five years and a fine of up to fifty thousand rupees; and if done carelessly, imprisonment for up to three years and a fine of up to thirty thousand rupees. 105. Not to spread the disease of Human Immunodeficiency Virus (HIV): (1) No person shall, knowing that they or any other person has the Human Immunodeficiency Virus (HIV) or Hepatitis B virus in their body, give their blood or cause to give such person's blood, or engage in sexual contact with another without taking any kind of precaution, or cause their own or such person's blood, semen, saliva, sputum or any human organ to enter another's body in any manner, with the intent to transmit such disease. (2) A person who commits or causes to commit an offence under sub-section (1) shall be liable to imprisonment for up to ten years and a fine of up to one hundred thousand rupees. Provided that, if such disease is transmitted due to negligence or carelessness without the intent to transmit, the punishment shall be imprisonment for up to three years and a fine of up to thirty thousand rupees. (3) If the victim themselves went to engage in sexual contact with a person who has the Human Immunodeficiency Virus or Hepatitis B virus, such person having the virus shall not be deemed to have committed an offence under this Section. 106.

Not to violate law relating to communicable disease: (1) No person shall violate rules, directions or orders issued by the Government of Nepal, Provincial Government or Local Level, or by an authorized officer under the law, regarding communicable disease. (2) A person who commits or causes to commit an offence under sub-section (1) shall be liable to imprisonment for up to six months or a fine of up to five thousand rupees or both. Provided that, if the violation of such rules, directions or orders results in a situation that may cause

123. Not to Perform Sexual Act in Public Place: (1) No person shall perform a sexual act with any person in a public place or in any other place in such a manner that it is visible to other people, or perform any kind of unnatural intercourse. (2) A person committing an offence under sub-section (1) shall be liable to imprisonment for a term not exceeding one year or a fine not exceeding ten thousand rupees or both. 124. Not to Cause Public Nuisance: (1) Except as otherwise provided by law, no person shall, by doing any act or by omitting to do any act required to be done by law, cause any kind of harm, loss, damage or danger or annoyance to neighbours or the general public. (2) A person committing an offence under sub-section (1) shall be liable to a fine not exceeding twenty-five thousand rupees. 125. Not to Gamble or Bet: (1) No person shall gamble or cause any other person to gamble. (2) A person committing an offence under sub-section (1) shall be liable to the following punishment: (a) For a person gambling or causing another to gamble for the first time, imprisonment for a term not exceeding three months or a fine not exceeding thirty thousand rupees, (b) For a person gambling or causing another to gamble from the second time onwards, imprisonment for a term not exceeding one year and a fine not exceeding fifty thousand rupees, and for each subsequent offence, an additional imprisonment for a term not exceeding three months and a fine not exceeding ten thousand rupees. Explanation: For the purpose of this Code: (1) "Gambling" means any kind of game or process where a bet is placed to win or lose, or gain or forfeit any kind of movable or immovable property or consideration based on chance, and said word also includes a bet or wager placed by oneself on the win or loss of others without oneself gambling, to gain or forfeit any movable or immovable property or consideration.

Provided that the following games or activities shall not be deemed gambling:?

(a) A game operated with the approval of the Government of Nepal, for entertainment at any public festival, fair, feast, festival, exhibition or ceremony, involving winning or losing some petty movable property,

(b) A lottery operated with the approval of an authorised official.

(2) "Causing another to gamble" means a person who, by knowingly making available a house, room, place or vehicle under one's own right, possession, usage, ownership or responsibility, or by making available any kind of means for gambling, causes another to gamble.

(3) The means used for gambling and all movable and immovable property obtained from gambling shall be confiscated. Provided that the house, room, place or vehicle where gambling took place shall not be confiscated.

(4) No person shall bet or cause any other person to bet.

(5) For the purpose of sub-section (4), if a person places a bet on the loss or win of a particular side in any game or process that may lawfully be played or caused to be played, to gain or forfeit any movable or immovable property or consideration, he or she shall be deemed to have committed the offence of betting.

(6) In case of an offence under sub-section (4), the subject matter of the bet shall be confiscated, and the person committing the offence shall be liable to imprisonment for a term not exceeding one year and a fine not exceeding ten thousand rupees.

(7) For an offence under this section, each count shall be determined on the basis of a conviction by the court. 126. Not to Beg or Cause to Beg: (1) No person shall beg in any public place, or incite a child to beg under the pretext of singing, dancing, playing or doing any work, or give any kind of money or remuneration to any other person to beg or to incite begging.

(2) A person committing an offence under sub-section (1) shall be liable to the following punishment, and the proceeds of begging shall also be confiscated:?

(a) For begging for the first time, imprisonment for a term not exceeding one month or a fine not exceeding one thousand rupees, and from the second time onwards, imprisonment for a term not exceeding two months or a fine not exceeding two thousand rupees for each time,

(b) For causing another to beg for the first time, imprisonment for a term not exceeding one year or a fine not exceeding ten thousand rupees or both, and from the second time onwards, imprisonment for a term not exceeding three years or a fine not exceeding thirty thousand rupees or both for each time.

Explanation: For the purpose of this section:

(1) If any ascetic (sadhu), saint, yogi or monk begs from door to door according to an immemorial tradition, or if begging is done in connection with any religious or cultural activity, such act shall not be deemed an offence under this section,

(2) "Public place" means a road, lane, park, vehicle station, government office or office premises, and said word also includes a vehicle used by the public. Added by the Act to Amend Some Acts Relating to Criminal Offences and Criminal Procedure, 2079.126a. Not to Accept Assistance in the Name of a Victim of an Offence: (1) No person shall, by citing the reason that a person is a victim of an offence, with or without displaying his or her picture, by making a public appeal or through social media or otherwise, solicit, accept or receive any kind of cash or kind in the name of donation, facility, assistance or grant from any person on behalf of such victim of the offence or a member of his or her family, for the purpose of providing medical treatment, any other kind of relief or facility, or for any other purpose.

(2) A person committing or causing to commit an offence under sub-section (1) shall be liable to imprisonment for a term not exceeding three months or a fine not exceeding five thousand rupees, and the cash or kind so received shall be confiscated.

(3) Notwithstanding anything contained elsewhere in this section, if a victim of an offence or a family member thereof receives any assistance or facility from the Government of Nepal, a Provincial Government or a Local Level, or receives assistance voluntarily given by any social organisation or any individual, it shall not be deemed to have committed an offence under this section. 127. Compensation to Be Recovered: If any person suffers harm, loss or damage to property from an offence under sections 104, 105, 106, 107, 108, 109, 110, 111, 113, 114, 115, 116, 117, 118 and 124 of this Chapter, the person causing such harm, loss or damage shall be required to pay compensation to the person so harmed, lost or damaged. 128.

Limitation: (1) In respect of any offence under this Chapter resulting in the death of a person, a complaint may be filed at any time. (2) In respect of an offence under sections 113, 114, 115, 116, 117, 118, 119, 120, 121 and 122, no complaint shall lie after the expiry of three months from the date of commission of such offence, and in respect of other offences under this Chapter, no complaint shall lie after the expiry of six months from the date of knowledge of the commission of such offence. Chapter-6 Offences Relating to Arms and Ammunition 129. Not to Manufacture Arms Without License: (1) No person shall, without obtaining a license, or even if a license has been obtained, contrary to the conditions and restrictions mentioned in the license, manufacture or repair arms or ammunition. Explanation: For the purpose of this Code: (a) "Arms" means a cannon, mortar, armoured vehicle, machine gun, rifle, gun, pistol, revolver or other similar devices operated with or without ammunition, and said word also includes machines, equipment and spare parts for making arms, (b) "Machine gun" means a Bren gun, Lewis gun, Sten gun, machine carbine, Tom's machine

carbine, G.M.G., short machine gun or other similar automatic arms, and said word also includes machines, equipment and spare parts for making machine guns, (c) "Ammunition" means gunpowder, cap, bullet, pellet, detonator, cartridge, fuse or other similar substances used in arms. (2) A person committing or causing to commit an offence under sub-section (1) shall be liable to imprisonment for a term not exceeding ten years and a fine not exceeding one hundred thousand rupees, having regard to the seriousness of the risk of arms or ammunition. 130. Not to Deal in Arms Without License: (1) No person shall, without obtaining a license, or even if a license has been obtained, contrary to the conditions and restrictions of the license, deal in arms and ammunition. Explanation: For the purpose of this Chapter, "Dealing" means the act of purchasing, selling, transporting, acquiring ownership, transferring, storing or collecting, warehousing, exporting or importing. (2) A person committing or causing to commit an offence under sub-section (1) shall be liable to imprisonment for a term not exceeding seven years and a fine not exceeding seventy thousand rupees. 131.

Not to Acquire Certain Types of Arms: (1) No person shall, by purchasing, selling, or through donation, gift, reward, partition, inheritance or any other means, acquire, keep, store, warehouse, use without the order of an authorised official, transport, export or import the following arms: (a) Armoured vehicle (tank) and its ammunition, (b) Cannon or mortar and its ammunition, (c) Machine gun and its ammunition, (d) Any kind of rifle and its ammunition, (e) Other arms and their ammunition specified by an authorised official as not permissible for the general public to acquire or keep. (2) A person acquiring arms mentioned in sub-section (1) shall, within thirty-five days from the date of acquisition of such arms, deposit them at the concerned District Administration Office. (3) A person committing or causing to commit an offence under sub-section (1) shall be liable to imprisonment for a term not exceeding seven years and a fine not exceeding seventy thousand rupees. (4) Notwithstanding anything contained elsewhere in this section, nothing shall be deemed to obstruct officers and soldiers of the Nepali Army, Nepal Police, Armed Police Force, Nepal, or other security personnel authorised by law to use arms, from keeping or using such arms in the course of performing their duties relating to security work. 132. Not to Keep or Carry Arms Without License: (1) No person shall, without obtaining a license, or even if a license has been obtained, contrary to the conditions and restrictions of the license, acquire, keep, warehouse, use or carry arms that are permissible to acquire, keep, warehouse, use or carry under law. Provided that nothing shall be deemed to obstruct officers and soldiers of the Nepali Army, Nepal Police, Armed Police Force, Nepal, or other security personnel authorised by law to use arms, from keeping, using or carrying such arms with them in the course of performing their duties relating to security work. (2) A person committing or causing to commit an offence under sub-section (1) shall be liable to imprisonment for a term not exceeding five years and a fine not exceeding fifty thousand rupees. 133.

Record of Arms and Ammunition Dealing to Be Maintained: (1) A person licensed to deal in arms or ammunition shall maintain a separate record of the arms or ammunition dealt with. (2) The record maintained under sub-section (1) shall, in addition to other matters, mention the following: (a) The type, description and quantity of arms purchased, sold, transported, warehoused, exported or imported, (b) If arms were sold to any person, the name, surname, address, citizenship or passport number and the date and place of issue of the purchaser. (3) A person dealing in arms or ammunition shall, when required by the officer controlling or administering arms and ammunition, the officer investigating the case or the court, produce or present the record under sub-section (2). (4) Except for a person engaged in the commercial dealing of arms or ammunition after obtaining a license, any other person who needs to deal in arms or ammunition shall do so only after obtaining the approval of the concerned District Administration Office. (5) A person doing or causing to do an act contrary to sub-section (1), (3) or (4) shall be liable to imprisonment for a term not exceeding two years and a fine not exceeding twenty thousand rupees. 134. Not to Produce or Deal in

Nuclear, Chemical, Biological or Toxic Arms: (1) No person shall manufacture, produce, purchase, sell, acquire, hold ownership, transfer, store, stockpile, transport, export or import, or invest in or manage any kind of nuclear, chemical, biological or toxic arms, or cause such acts to be done. Explanation: For the purpose of this section: (a) "Chemical weapon" means a chemical weapon as defined in the Convention on the Prohibition of the Development, Production, Stockpiling and Use of Chemical Weapons and on Their Destruction, concluded in Paris on 29th Poush, 2049 (13 January, 1993). (b) "Biological or toxic weapon" means a biological or toxic weapon as defined in the Convention on the Prohibition of the Development, Production and Stockpiling of Bacteriological (Biological) and Toxin Weapons and on Their Destruction, concluded in London, Moscow and Washington on 28th Chaitra, 2028 (10 April, 1972). (2) A person committing an offence under sub-section (1) shall be liable to imprisonment for a term not exceeding twenty years and a fine not exceeding two hundred thousand rupees. 135. Movable and Immovable Property Related to Offence to Be Confiscated: In case of any offence under this Chapter, the arms and ammunition related to such offence, the machinery, equipment, tools or vehicles for producing, manufacturing, keeping or transporting such arms, and the proceeds from the purchase and sale of such arms or ammunition and the amount derived therefrom shall be confiscated.

Provided that if the owner of the means of transport or vehicle proves that he or she did not know that arms or ammunition were being transported, such vehicle shall not be confiscated. 136. Compensation to Be Recovered: If, as a result of any offence committed under this Chapter, any person suffers harm, loss or damage to his or her body or property, reasonable compensation thereof shall be recovered from the offender and paid to the victim. 137. Limitation: In respect of an offence under section 132, no complaint shall lie after the expiry of three months from the date of commission of such offence, and in respect of other offences under this Chapter, no complaint shall lie after the expiry of six months from the date of knowledge of the commission of such offence. Chapter ? 7

Offences Relating to Explosive Substances

138. Not to Produce Explosive Substances: (1) No person shall, without obtaining a license, or even if a license has been obtained, contrary to the conditions and restrictions mentioned in the license, make, prepare or produce any kind of explosive substance. Explanation: For the purpose of this Code:

(a) "Explosive substance" means I.E.D., T.N.C., Amatol, Barotol, Pentolite, Rapid Detonative Explosive (R.D.X.), Torpex, Blastic Explosive, Dynamite, Gunpowder, Nitroglycerine, Gelignite, Stemit, Celcite, Detonator, Blasting Cap, Electric Blasting Cap, Fuse, Fireworks, Crackers, Gun Cotton, Gun Powder, Blasting Powder, Fulminate of Mercury or any other metal, any other substance of a similar nature that explodes, or any substance specified by the Government of Nepal by notification in the Nepal Gazette, and said word also includes bombs.

(b) "Bomb" means a grenade or any other object or substance of a similar nature containing explosive substances, made to explode by itself or by any other substance through any explosive substance or other means, formula, process or method.

(2) A person committing or causing to commit an offence under sub-section (1) shall be liable to the following punishment:?

(a) If it is a high explosive, imprisonment for a term not exceeding ten years and a fine not exceeding one hundred thousand rupees,

(b) If it is a low explosive, imprisonment for a term not exceeding five years and a fine not exceeding fifty

thousand rupees,

(c) If it is a common explosive, imprisonment for a term not exceeding three years and a fine not exceeding thirty thousand rupees,

(d) For a person producing, using, keeping or otherwise dealing in the mechanism, machine or equipment for producing or manufacturing explosive substances, imprisonment for a term not exceeding two years and a fine not exceeding twenty thousand rupees.

Explanation: For the purpose of this Chapter:?

(1) "High explosive" means dynamite, nitroglycerine, T.N.C., gelatinite, mercuric nitrate, fulminate of mercury, R.D.X., amatol, barotol, pentolite, stemite, celcite, blastic explosives, bombs and other explosive substances of a similar nature.

(2) "Low explosive" means blasting powder, gun powder, gun cotton, mercury, fulminate of any other metal and other explosive substances of a similar nature.

(3) "Common explosive" means detonator, blasting cap, electric blasting cap, fuse, fireworks, crackers and other explosive substances of a similar nature. 139. Not to Deal in Explosive Substances: (1) No person shall, without obtaining a license, or even if a license has been obtained, contrary to the conditions and restrictions mentioned in the license, deal in explosive substances or cause such dealing. Explanation: For the purpose of this section, "Dealing" means the act of purchasing or causing purchase, selling, keeping, using, stocking, warehousing, transporting, altering, adulterating, exporting or importing.

(2) A person committing an offence under sub-section (1) shall be liable to the following punishment:?

(a) If it is a high explosive, imprisonment for a term not exceeding ten years and a fine not exceeding one hundred thousand rupees,

(b) If it is a low explosive, imprisonment for a term not exceeding five years and a fine not exceeding fifty thousand rupees,

(c) If it is a common explosive, imprisonment for a term not exceeding three years and a fine not exceeding thirty thousand rupees. 140. Not to Make or Use Artificial Explosive Substances: (1) No person shall, by manipulating, altering or changing the form, structure or shape of ordinary consumer goods used or consumed by the general public, or their physical or chemical elements, through any physical or chemical process, formula, measure or method, use or cause to be used such goods as any kind of bomb or other explosive substance.

(2) A person committing an offence under sub-section (1) shall be liable to imprisonment for a term not exceeding three years or a fine not exceeding thirty thousand rupees or both. 141.

Not to Lay Landmines or Place Explosive Substances: (1) No person shall place or keep explosive substances on a road or path, site, building, bridge, tunnel or any other place used by the public, or place any inflammable substance or electrical trap (ambush), or by placing such substance or laying such trap, obstruct movement or the use of any other public utility. (2) A person committing or causing to commit an offence under sub-section (1) shall be liable to imprisonment for a term not exceeding ten years and a fine not exceeding one hundred thousand rupees. (3) If, as a result of an offence under sub-section (1), any person suffers bodily injury, loss of life or damage to property, the punishment under sub-section (2) shall be added to the punishment under this Code for that act. 142. Record of Production or Dealing to Be Maintained: (1) A

person licensed to produce or deal in explosive substances shall, while producing, manufacturing, preparing or dealing in such substances, maintain a separate record of each explosive substance produced or dealt in each time. (2) The record under sub-section (1) shall, in addition to other matters, include the following details: (a) What kind of explosive substance was produced, prepared or manufactured, and in what quantity, (b) If dealing in the explosive substance took place, for what purpose the dealing was done, (c) If the explosive substance was sold or distributed, to which person, for what purpose, and in what quantity it was sold or distributed. (3) The record maintained under sub-section (1) shall be made available by the person dealing in explosive substances when required by the authorised officer controlling or administering explosive substances, the officer investigating or prosecuting the case, or the court. (4) A person doing or causing to do any act contrary to this section shall be liable to imprisonment for a term not exceeding three months or a fine not exceeding five thousand rupees or both. 143. Care to Be Taken While Transporting, Carrying or Storing Explosive Substances: (1) A person licensed to deal in explosive substances shall, while using, transporting or carrying, or storing such substances, use them or transport, carry or store them in appropriate magazines so as to ensure adequate safety according to the nature of such substances. (2) A person doing or causing to do any act contrary to sub-section (1) shall be liable to a fine not exceeding fifty thousand rupees. 144.

Movable or Immovable Property Related to Offence to Be Confiscated: In case of any offence punishable under this Chapter, all explosive substances related to such offence, the goods, equipment, tools or raw materials used in the production, preparation or manufacture of such substances, the vehicle or means of transport used for transporting or carrying such substances, and the proceeds from the production, preparation, manufacture or dealing in such substances and the amount derived therefrom shall be confiscated. Provided that if the owner of the means of transport or vehicle proves that he or she did not know that explosive substances were being transported, such means of transport or vehicle shall not be confiscated. 145. Compensation to Be Recovered: If, as a result of any offence committed under this Chapter, any person suffers harm or loss to his or her body or property, reasonable compensation thereof shall be recovered from the offender and paid to the victim. 146. Limitation: In respect of an offence under section 143, no complaint shall lie after the expiry of three months from the date of commission of such offence, and in respect of other offences under this Chapter, no complaint shall lie after the expiry of six months from the date of knowledge of the commission of such offence. Chapter - 8 Offences Against National and Public Heritage 147. Not to Appropriate Public Houses and Land by Any Individual: (1) No person shall, without prior approval of the Government of Nepal, Provincial Government or Local Level, with or without registration, appropriate, or in any manner occupy, cultivate or encroach upon, or cause any kind of obstruction to the possession and use of, the following houses or land: (a) Houses and land belonging to the Government of Nepal, Provincial Government or Local Level, or a public institution fully or majority owned or controlled by the Government of Nepal, Provincial Government or Local Level, deleted by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2075. (b) Community or public houses and land that have been in community or public use since ancient times. (2) A person committing or causing to commit an offence under sub-section (1) shall be liable to imprisonment for a term not exceeding three years or a fine not exceeding thirty thousand rupees or both. (3) If the house or land mentioned in sub-section (1) has already been registered or transferred in the name of any particular individual, such registration shall automatically be nullified. 148.

Not to Appropriate Public Heritage by Any Individual: (1) No person shall, with or without registration, make any public heritage private, or in any manner obstruct the public use of such heritage, or in any other manner occupy, cultivate or encroach upon it, or cause any kind of harm, loss or damage to such heritage. Explanation: For the purpose of this section, "Public heritage" means the following heritages: (a) Paths that

have been in public use since ancient times, (b) Roads, grazing land, water spouts, cremation grounds, water taps, public water stops, wells, ponds, embankments of ponds, sources of drinking water, canals, irrigation ditches, pastures for cattle, or drainage outlets in public use, (c) Places where markets and bazaars are held, (d) Religious sites, monasteries (maths), temples, stupas, gumbas, mosques or churches, (e) Covered rest houses (pati), public rest houses (pauwa sattal), rest platforms (chautaro), (f) Historical statues, sculptures, cultural pillars or monuments, (g) Places for performing religious or cultural acts or ceremonies, (h) National forests specified by the Government of Nepal, or forests owned by the Government of Nepal, Provincial Government or Local Level, or any part thereof. (2) A person committing or causing to commit an offence under sub-section (1) shall be liable to imprisonment for a term not exceeding five years or a fine not exceeding fifty thousand rupees or both. (3) If the public heritage under sub-section (1) has already been registered or transferred in the name of any person, such registration or transfer shall automatically be nullified. 149. Not to Encroach Upon Natural Heritage: (1) No person shall, except as permitted by law, in any manner encroach upon or occupy natural heritage, or sell or distribute such heritage, or cause any kind of harm, loss or damage to its natural formation or beauty.

Explanation: For the purpose of this section, "Natural heritage" means the following heritages: (a) National parks, wildlife or hunting reserves specified by the Government of Nepal for the protection of the natural environment, flora and fauna, (b) Conservation areas, rivers, rivulets, streams, lakes, ponds, wetlands or natural waterfalls, mountain peaks or any part thereof, high mountain summits specified by the Government of Nepal, (c) Wildlife, flora or geological formations protected by prevailing law or by the Government of Nepal, Provincial Government or Local Level, (d) Habitats of wildlife protected by the Government of Nepal, Provincial Government or Local Level, environmental systems, or herbs the sale, distribution, export or import of which is prohibited. (2) A person committing or causing to commit an offence under sub-section (1) shall be liable to imprisonment for a term not exceeding ten years and a fine according to the amount of loss if the loss is known, or a fine not exceeding ten hundred thousand rupees if the loss is not known, or both. 150. Not to Unlawfully Occupy or Destroy Public Physical Infrastructure: (1) Except as permitted by law, no person shall unlawfully occupy any public physical infrastructure, prevent its use, or in any manner cause harm, loss or destruction to it. Explanation: For the purpose of this section, "Public physical infrastructure" means the following structures used by the public: (a) Roads, paths, bridges, tunnels, airports, (b) Reservoirs, canals, sources of drinking water and ponds, power houses, electricity transmission centres or lines, (c) Ropeways, cable cars, telecommunication equipment, radio stations, television transmission centres and their towers, (d) Railways and railway tracks, (e) Public bus stations, public parks, or (f) Other similar structures. (2) A person committing or causing to commit an offence under sub-section (1) shall be liable to imprisonment for a term not exceeding ten years and a fine not exceeding one hundred thousand rupees. 151.

Not to Insult or Damage National Anthem, Flag or Coat of Arms: (1) No person shall, with the intention of spreading hatred against Nepal or the Government of Nepal, insult the national anthem of Nepal, burn the flag of Nepal, knowingly insult it, or use such anthem, flag or the coat of arms of Nepal in any place, object or situation where it should not be used from the perspective of public morality, decency or propriety. (2) A person committing or causing to commit an offence under sub-section (1) shall be liable to imprisonment for a term not exceeding three years or a fine not exceeding thirty thousand rupees or both. (3) No person shall, with the intention of spreading hatred against or insulting a country having friendly relations with Nepal, burn the national flag of such country, knowingly misuse it, or misuse the flag or coat of arms of such country, or use such flag or coat of arms in any object, place or situation where it should not be used from the perspective of public morality and decency. (4) No person shall, with the intention of spreading hatred against or insulting the United Nations or a body or specialised agency associated with the United Nations, or any

international or regional organisation of which Nepal is a member, in any manner misuse the flag or coat of arms of such organisation, or use such flag or emblem, vehicle or any other object of such organisation without its approval. (5) A person committing or causing to commit an offence under sub-section (3) or (4) shall be liable to imprisonment for a term not exceeding one year or a fine not exceeding ten thousand rupees or both. 152. Not to Insult National Heroes: (1) No person shall knowingly hate, insult or defame national heroes specified by the Government of Nepal, or break, harm or damage statues, pillars or monuments of such heroes. Provided that any comment made in good faith in the context of studying, researching or evaluating the biography of such heroes shall not be deemed an offence under this section. (2) A person committing or causing to commit an offence under sub-section (1) shall be liable to imprisonment for a term not exceeding six months or a fine not exceeding five thousand rupees or both. 153. Compensation to Be Recovered: In respect of harm or loss caused by an offence under section 150, reasonable compensation shall be recovered from the offender. 154.

Limitation: In respect of offences under sections 147, 148 and 149 of this Chapter, a complaint may be filed at any time, and in respect of offences under other sections, no complaint shall lie after the expiry of six months from the date of commission of such offence. Chapter-9 Offences Relating to Religion 155. Not to Damage Religious Site or Place Considered Sacred: (1) No person shall, with the intention of hating or insulting the religious faith or religion of any caste, ethnicity, sect or class, or knowing that it may happen, cause harm, loss or damage to any place of religious worship, prayer or ritual, or any place, object, cremation ground or cemetery considered sacred, or in any manner defile, spoil, dirty or do any similar act. (2) A person committing or causing to commit an offence under sub-section (1) shall be liable to imprisonment for a term not exceeding three years and a fine not exceeding thirty thousand rupees. (3) If a foreigner commits or causes to commit an offence under sub-section (1), he or she shall, within seven days of serving the imprisonment under sub-section (2), be deported from Nepal. 156. Not to Hurt Religious Sentiments: (1) No person shall, by writing, speech, shape or sign, or in any other manner, hurt the religious sentiments of any caste, ethnicity, sect or class. (2) A person committing or causing to commit an offence under sub-section (1) shall be liable to imprisonment for a term not exceeding two years and a fine not exceeding twenty thousand rupees. 157. Not to Obstruct Religious Practices: (1) No person shall knowingly obstruct the religious practices of others that have been followed or observed since ancient times. (2) A person committing or causing to commit an offence under sub-section (1) shall be liable to imprisonment for a term not exceeding one year or a fine not exceeding ten thousand rupees or both. 158.

Not to Cause Religious Conversion: (1) No person shall cause another person to change his or her religion, or attempt or incite to do so. (2) No person shall do any act or behaviour that disturbs the religion, belief or faith of any caste, ethnicity or sect that has been followed since ancient times, or cause conversion to any other religion with or without any temptation, or propagate such religion or belief with the intention of causing religious conversion. (3) A person committing or causing to commit an offence under sub-section (1) or (2) shall be liable to imprisonment for a term not exceeding five years and a fine not exceeding fifty thousand rupees. (4) If a person committing or causing to commit an offence under sub-section (1) or (2) is a foreigner, such person shall, within seven days of serving the imprisonment under this section, be deported from Nepal. 159. Limitation: In respect of an offence under section 158, no complaint shall lie after the expiry of six months from the date of knowledge of the commission of such offence, and in respect of other offences under this Chapter, no complaint shall lie after the expiry of three months from the date of commission of such offence. Chapter-10 Offences Relating to Discrimination and Other Derogatory Behaviour 160. Not to Discriminate: (1) Except as otherwise provided by law, an official exercising powers under law shall not, while exercising such powers or applying general law, knowingly discriminate against any citizen on the basis of

origin, religion, colour, caste, ethnicity, sex, physical condition, disability, health status, marital status, pregnancy, economic condition, language or region, ideological belief or any other similar grounds. (2) A person committing or causing to commit an offence under sub-section (1) shall be liable to imprisonment for a term not exceeding three years or a fine not exceeding thirty thousand rupees or both. 161. Not to Purchase, Sell or Distribute Goods or Services with Discrimination: (1) No person shall, while purchasing, selling or distributing any goods or services, or causing such acts, purchase, sell or distribute only from or to a person of a particular caste, ethnicity or sect, or refuse to provide or sell or distribute to a person of a particular caste, ethnicity or sect.

Provided that if, with the approval of an authorised official under law, any particular goods or services are made available or sold or distributed only to persons of a particular caste, ethnicity or sect for the protection or development of the interests of a class that is economically, socially or educationally backward, it shall not be deemed an offence under this section.

(2) A person committing or causing to commit an offence under sub-section (1) shall be liable to imprisonment for a term not exceeding one year or a fine not exceeding ten thousand rupees or both. 162. Not to Force Labour: (1) No person shall force another person to work against his or her will. Provided that nothing in this section shall be deemed to obstruct the conscription of labour for public works under law.

(2) A person committing or causing to commit an offence under sub-section (1) shall be liable to imprisonment for a term not exceeding three months or a fine not exceeding five thousand rupees or both. 143. Not to Enslave: (1) No person shall make another person a slave or a bond servant (kamara/kamari), keep such person in that status, force such person to work, or treat or cause to treat any person in any other similar manner.

(2) A person committing or causing to commit an offence under sub-section (1) shall be liable to imprisonment for a term of five to ten years and a fine of fifty thousand to one hundred thousand rupees. 144. Not to Take Hostage or Keep in Bonded Labour: (1) No person shall keep any person as a bonded labourer (kamaiya) or as a hostage, or keep in bondage (bandha), or force to work in the status of a bond, or treat or cause to treat any person in any other similar manner, in return for any kind of consideration.

(2) A person committing or causing to commit an offence under sub-section (1) shall be liable to imprisonment for a term of three to seven years and a fine of thirty thousand rupees to one hundred thousand rupees. 145. Not to Disturb Social Customs: (1) No person shall, by deception or force, do or cause to do any act that disturbs or is likely to disturb the social customs of another. Explanation: For the purpose of this section, customs involving caste discrimination shall not be considered social customs.

(2) A person committing an offence under sub-section (1) shall be liable to imprisonment for a term not exceeding one year or a fine not exceeding ten thousand rupees or both. 146.

Not to Practice Untouchability or Other Discriminatory Behaviour Based on Caste: (1) No person shall practice untouchability or any other kind of discrimination 179. Not to Cause Death in Grave Provocation or in the Heat of Passion: (1) Amended by the Act Amending Some Nepal Acts Relating to the Civil Code, 2075. Notwithstanding anything written in Section 177 or 178, a person who causes death under the following circumstances shall be liable to imprisonment for a term of ten to fifteen years and a fine of one hundred thousand rupees to one hundred fifty thousand rupees:- (a) Where the offender, having lost the power of self-control due to an act of another that instantly gives grave provocation, causes the death of the person who gave such provocation, Provided that this clause shall not apply in the following circumstances:- (1)

Where the offender is provoked by an act done in compliance with law, in exercise of the right of private defense, or by a public servant in the performance or attempted performance of his official duty, (2) Where the offender himself/herself has provoked someone with intent to cause harm to that person, and the death of a person results from an act done by such provoked person, (b) Where, while exercising the right of private defense in good faith, the limit of such right is exceeded, resulting in the death of the person against whom such right was exercised, (c) Where death is caused instantly in the heat of passion arising from a sudden quarrel, Provided that while doing an act under this clause, the offender must not have gained any undue advantage or acted in a cruel or unnatural manner. (2) Notwithstanding anything written in clauses (b) and (c) of subsection (1), the provisions written in those clauses shall not apply where death is caused with malice aforethought or premeditation. 180. Punishment if the Person Whom It was Intended to Kill Does Not Die but Another Person Dies: Notwithstanding anything written in Sections 177, 178, and 179, if a person, with the intention of killing someone, or knowing or having reason to believe that some person may die, does an act, and that person does not die but another person dies, such person shall be liable to punishment as written in Sections 177, 178, and 179 according to the circumstances. 181.

Not to Cause Death by a Negligent Act: (1) No person shall cause the death of another by a negligent act. (2) A person committing an offense under subsection (1) shall, except in the circumstances of Sections 177, 178, and 179, be liable to imprisonment for a term of three to ten years and a fine of thirty thousand rupees to one hundred thousand rupees. 182. Not to Cause Death by a Rash Act: (1) Except in the circumstances of Section 179, no person shall cause the death of another by a rash act. (2) A person committing an offense under subsection (1) shall be liable to imprisonment for a term of up to three years and a fine of up to thirty thousand rupees. (3) Except as written in subsection (1), if a person does an act in circumstances where death is not foreseeable, and death results accidentally, such person shall be liable to imprisonment for a term of six months to two years or a fine of up to twenty thousand rupees or both. 183. Not to Attempt to Cause Death: (1) No person shall attempt to cause the death of another with the intention of killing. (2) A person committing or causing the commission of an offense under subsection (1) shall be liable to imprisonment for a term of up to ten years and a fine of up to one hundred thousand rupees. 184. Not to Abandon or Desert a Person under One's Guardianship: (1) A person who has a duty to care for, or tend to, a newborn infant, child, disabled person, patient, or elderly person shall not abandon, desert, or neglect such person in a manner that may endanger his/her body or life. (2) A person committing or causing the commission of an offense under subsection (1) shall be liable to imprisonment for a term of up to three years and a fine of up to thirty thousand rupees. (3) If such a child, disabled person, patient, or elderly person dies due to an offense under subsection (1), the offender shall be liable to imprisonment for a term of up to seven years and a fine of up to seventy thousand rupees. Provided that if the death of a newborn infant occurs due to being abandoned, deserted, or neglected, the punishment shall be as per Section 177. 185. Not to Abet Suicide: (1) No person shall abet another to commit suicide or create or cause circumstances leading to such an act. (2) A person committing an offense under subsection (1) shall be liable to imprisonment for a term of up to five years and a fine of up to fifty thousand rupees. 186.

Chapter - 13

Offenses Against the Protection of Pregnancy

188. Not to Cause Miscarriage: (1) Except in the circumstances of Section 189, no person shall cause a miscarriage, or with the intention of causing a miscarriage, or knowing or having reason to believe that a miscarriage may occur, do any act to cause a miscarriage.

(2) No person shall cause a miscarriage by coercing, threatening, luring, or seducing a pregnant woman.

(3) A person committing or causing the commission of an offense under subsection (1) or (2) shall be liable to punishment as follows:-

(a) If the pregnancy is up to twelve weeks, imprisonment for up to one year and a fine of up to ten thousand rupees,

(b) If the pregnancy is more than twelve weeks and up to twenty-five weeks, imprisonment for up to three years and a fine of up to thirty thousand rupees,

(c) If the pregnancy is more than twenty-five weeks, imprisonment for up to five years and a fine of up to fifty thousand rupees.

(4) If, while doing an act to cause a miscarriage, the miscarriage does not occur immediately but the child is born alive and dies immediately as a result of such act, it shall be deemed for the purpose of this Section that a miscarriage has been caused.

(5) If a person attempts to take the life of a pregnant woman, and that woman does not die but the pregnancy of twenty-five weeks or more is terminated, the offender committing such act shall, in addition to the punishment under this Code or other law, be liable to imprisonment for up to five years.

(6) Notwithstanding anything written elsewhere in this Section, if a person does an act against a pregnant woman out of any malice or grudge, and a miscarriage results, even if the act was not done with the intention of causing a miscarriage, such person shall be liable to punishment as follows:-

(a) If the pregnancy is up to twelve weeks, imprisonment for up to one year,

(b) If the pregnancy is more than twelve weeks and up to twenty-five weeks, imprisonment for up to three years,

(c) If the pregnancy is more than twenty-five weeks, imprisonment for up to five years.

(7) No person shall, with the purpose of causing a miscarriage, do or cause to be done any act to identify the sex of the fetus in the womb; and after sex identification, no person shall cause or cause to be caused a miscarriage.

(8) A person committing an offense under subsection (7) shall be liable to punishment as follows:-

(a) For identifying or causing the sex of the fetus in the womb with the purpose of causing a miscarriage, imprisonment for a term of three months to six months, and

(b) For causing or causing to be caused a miscarriage after sex identification, imprisonment for up to one year in addition to the punishment written in subsection (3).

189. When Miscarriage May be Caused: Notwithstanding anything written in Section 188, if a health worker causes a miscarriage under the following circumstances, it shall not be deemed to be an offense under this Code:-

(a) With the consent of the pregnant woman, for a pregnancy of up to twelve weeks,

(b) Where, if a miscarriage is not caused, the life of the pregnant woman may be endangered, or her physical or mental health may deteriorate, or a disabled child may be born, according to the opinion of a licensed

medical practitioner, and the miscarriage is caused with the consent of such woman,

(c) For a pregnancy of up to eighteen weeks resulting from rape or incest, with the consent of the pregnant woman,

(d) Where the woman is infected with Human Immunodeficiency Virus (HIV) or other incurable disease of a similar nature, with her consent. Explanation: For the purpose of this Section, "health worker" means a doctor or health worker who has the prescribed qualification and is licensed to cause a miscarriage. 190. Limitation: In an offense under this Chapter, no complaint shall lie after the expiry of six months from the date of knowledge of such offense. Chapter - 14

Offenses Relating to Assault or Maiming

191. Not to Assault: (1) No person shall assault another.

(2) If a person does any of the following acts to another, he/she shall be deemed to have assaulted him/her:-

(a) Causing any kind of physical pain,

(b) Doing an act and thereby transmitting any disease other than those mentioned in Sections 104 and 105 Added by the Act Amending Some Nepal Acts Relating to the Civil Code, 2075.,

(c) Rendering disabled by any other act. Explanation: For the purpose of this Section, "disabled" means a condition where any part of the body is unable to function normally, and that term also includes mental disability.

(3) A person committing or causing the commission of an offense under subsection (1) shall be liable to imprisonment for a term of up to three years or a fine of up to thirty thousand rupees or both. 192.

Not to Maim: (1) No person shall maim or cause to be maimed another. (2) If a person knowingly assaults another and the following results occur, it shall be deemed that the offense of maiming has been committed:-

(a) Depriving of the power of sight by damaging or destroying the eye, causing blindness, (b) Destroying the power of smell of the nose, (c) Destroying the power of hearing of the ear, (d) Destroying the power of speech of the tongue, (e) Cutting off a woman's breast, (f) Rendering a woman sterile or a man impotent, (g) Breaking, fracturing, dislocating the spine, backbone, arms, legs, or joints of such limbs, rendering them useless, (h) Rendering incapable of performing one's professional work due to the assault. (3) Even if maiming does not occur immediately from the assault, if a result as mentioned in subsection (2) subsequently emerges as a consequence of the same act, it shall also be deemed that maiming has occurred. (4) A person committing an offense under subsection (1) shall be liable to imprisonment for a term of up to ten years and a fine of up to one hundred thousand rupees. (5) Notwithstanding anything written in subsection (4), where there is more than one limb performing the same type of function, and only one such limb is rendered useless, the punishment shall be half of the punishment written in that subsection; and if the maimed wound heals and becomes functional, the punishment shall be imprisonment for up to three years and a fine of up to thirty thousand rupees. Added by the Act Amending Some Acts Relating to Criminal Offenses and Criminal Procedure, 2079.192A. Not to Maim by Using Acid: (1) No person shall maim, cause to be maimed, or cause physical injury to another by throwing, sprinkling, pouring, using, or administering acid.

Explanation: For the purposes of this Code, "acid" means any inorganic acid-based chemical substance that burns, causes corrosive damage, or otherwise seriously affects human organs, animals, or other biological or non-biological objects; and that term also includes nitric acid, sulfuric acid, hydrochloric acid, and other

hazardous and flammable chemical substances. (2) If, as a result of any act under subsection (1) or the consequence thereof, both eyes of a person are burned or damaged resulting in complete loss of sight, both ears are burned or damaged resulting in complete loss of hearing, the nose is burned or damaged becoming useless, the face is completely burned or damaged causing disfigurement, if the victim is a woman, both breasts are burned or damaged becoming useless, or the genitals of any person are burned or damaged and destroyed, the person committing or causing such offense shall be liable to imprisonment for twenty years and a fine of ten lakh rupees. (3) Except as written in subsection (2), if, as a result of any act under subsection (1) or the consequence thereof, one eye or one ear of a person is burned or damaged becoming useless, the face is partially burned or damaged causing disfigurement, if the victim is a woman, one breast is burned or damaged becoming useless, both hands are burned becoming useless, both feet are completely burned becoming useless, any part of the head is burned and damaged, or the spine is burned or damaged becoming useless, the punishment shall be imprisonment for a term of fifteen years to twenty years and a fine of seven lakh rupees to ten lakh rupees. (4) Except as written in subsection (2) or (3), if, as a result of any act under subsection (1) or the consequence thereof, any other part of a person's body is maimed or physically injured, the punishment shall be, according to the nature of the offense, imprisonment for a term of seven years to ten years and a fine of five lakh rupees to seven lakh rupees. (5) If the victim of an offense under subsection (1) does not die immediately, but dies within one year from the date of such offense as a result of the same act, it shall be deemed that the offense of homicide and the result under subsection (2), (3), or (4) has occurred, and the punishment shall be as per that subsection. (6) If a person attempts to do an act under subsection (1) but the act does not affect the concerned person, or someone avoids or escapes from it, the person attempting such act shall be deemed to have made an attempt to commit an offense under this Section, and shall be liable to imprisonment for a term of five years to seven years and a fine of one lakh rupees to three lakh rupees. (7) The entire amount received as a fine under subsection (2), (3), or (4) shall be given to the victim as compensation. (8) Reasonable compensation shall be recovered considering the physical and mental pain suffered by the victim due to an offense under this Section, the severity of the maiming, and the fine amount, and shall be provided to the victim.

193. Repealed by the Act Amending Some Acts Relating to Criminal Offenses and Criminal Procedure, 2079. Not to Disfigure by Using Inflammable, Organic, or Poisonous Substances: Amended by the Act Amending Some Acts Relating to Criminal Offenses and Criminal Procedure, 2079. (1) No person shall cause pain to the body or disfigure the face or any part of the body of another by using, throwing, sprinkling, pouring, burning, branding, smearing, or rubbing with inflammable, organic, or poisonous substances other than acid or similar chemical substances, or cause such acts to be done.

(2) A person committing an offense under subsection (1) shall, depending on the nature of the offense, be liable: if the face is disfigured, imprisonment for a term of five years to eight years and a fine of one lakh rupees to five lakh rupees; and if any other part of the body is disfigured or pain is caused to the body, imprisonment for a term of three years to five years and a fine of fifty thousand rupees to three lakh rupees.

(3) The entire amount received as a fine under subsection (2) shall be given to the victim as compensation.

194. Punishment for Assault or Maiming in Grave Provocation or in the Heat of Passion: (1) Notwithstanding anything written in Section 191 or 192, a person who commits an assault under the following circumstances shall, if he/she has caused maiming, be liable to imprisonment for up to two years or a fine of up to twenty thousand rupees or both; and if he/she has caused any other kind of injury, be liable to imprisonment for up to one year or a fine of up to ten thousand rupees or both:-

(a) Where the offender, having lost the power of self-control due to an act of another that instantly gives

grave provocation, assaults the person who gave such provocation, or mistakenly assaults someone else, or accidentally causes injury to someone else. Provided that this clause shall not apply in the following circumstances:-

(1) Where the offender is provoked by an act done in compliance with law, in exercise of the right of private defense, or by a public servant in the performance or attempted performance of his official duty, and commits an assault,

(2) Where the offender himself/herself has provoked someone with intent to cause harm to that person, and the offender himself/herself is provoked by an act done by such provoked person and commits an assault causing injury.

(b) Where injury is caused to someone by using more force than necessary for private defense,

(c) Where injury is caused instantly to someone in the heat of passion arising from a sudden quarrel.

Provided that while doing an act under this clause, the offender must not have gained any undue advantage or acted in a cruel or unnatural manner.

(2) Notwithstanding anything written in clauses (b) and (c) of subsection (1), the provisions written in those clauses shall not apply where the assault or maiming is done with malice aforethought or premeditation. 195. Not to Assault, Maim, or Cause Other Injury by a Negligent or Rash Act: (1) No person shall assault, maim, or cause other injury to another by a negligent act or a rash act.

(2) A person committing an offense under subsection (1) shall be liable to punishment as follows:-

(a) If maiming is caused by a negligent act, imprisonment for up to two years or a fine of up to twenty thousand rupees or both; and if other kind of injury is caused, imprisonment for up to one year or a fine of up to ten thousand rupees or both,

(b) If such an offense is committed by a rash act, imprisonment for up to six months or a fine of up to five thousand rupees or both. 196. Not to Use Criminal Force: (1) No person shall use criminal force against another.

(2) If a person does any of the following acts to another, he/she shall be deemed to have used criminal force:-

(a) Using any kind of force against any person with the intention of committing an offense,

(b) Using force against any person with the intention of causing fear, terror, or annoyance of injury to such person or his/her family or property, or knowing that such result may occur,

(c) Intimidating or threatening someone that force is about to be used against him/her, or using coercion, or otherwise attempting to do so.

(3) Notwithstanding anything written elsewhere in this Section, the use of force shall not be deemed to be criminal force if it is done: while teaching, training, or providing instruction on the relevant subject; while performing any kind of acting; while providing treatment; or in a beneficial manner with the consent of the person; or if force of a natural nature is used during any kind of sport. Provided, however, that the provisions of this subsection shall not apply if force is used with malice to cause injury to someone.

(4) A person using or causing the use of criminal force shall, if done with a weapon, be liable to imprisonment for up to three years or a fine of up to thirty thousand rupees or both; and if done without a weapon, be liable

to imprisonment for up to one year or a fine of up to ten thousand rupees or both. 197.

Not to Render Unconscious with Intent to Commit Offense: (1) No person shall, with the intention of facilitating the commission of an offense, administer to another any substance that renders unconscious, stupefies, or causes illness, or cause such substance to be consumed in any other manner, or cause unconsciousness in any manner. (2) A person committing or causing the commission of an offense under subsection (1) shall be liable to imprisonment for up to one year and a fine of up to ten thousand rupees. (3) If an offense has been committed by doing an act under subsection (1), the punishment under this Section shall be added to the punishment for such offense. 198. Compensation: If any injury, loss, or damage is caused to the body or life of any person due to an offense mentioned in this Chapter, reasonable compensation shall be recovered from the offender and given to the victim. 199. Limitation: For an offense under Section 196, no complaint shall lie after the expiry of three months from the date of such offense; for an offense under Section 197, no complaint shall lie after the expiry of six months from the date such person regains consciousness; and for other offenses under this Chapter, no complaint shall lie after the expiry of one year from the date of such offense. Chapter-15 Offenses Relating to Unlawful Detention 200. Not to Detain Maliciously: (1) No person shall, except in accordance with law, maliciously detain or cause to be detained any person in any manner. (2) A person committing an offense under subsection (1) shall be liable to imprisonment for up to three years and a fine of up to thirty thousand rupees. (3) No person other than an authorized person shall obstruct or cause obstruction to the movement of another. (4) A person committing an offense under subsection (3) shall be liable to imprisonment for up to six months or a fine of up to five thousand rupees or both. 201. Not to Detain Without Providing Minimum Humane Facilities: (1) An official authorized under law to detain a person shall not detain or cause to be detained any person without providing the facilities required by law to be provided, or without providing the minimum humane facilities available at the place of detention. (2) A person committing an offense under subsection (1) shall be liable to imprisonment for up to one and a half years and a fine of up to fifteen thousand rupees. 202.

Not to Continue Detention After Order for Release: (1) After receipt of an order from an authority authorized by law to release a person detained under law, such person shall not be kept in detention without being released from detention. (2) A person committing or causing the commission of an offense under subsection (1) shall be liable to imprisonment for up to one year and a fine of up to ten thousand rupees. 203. Not to Detain Covertly: (1) When detaining a person, an authorized official shall not detain him/her covertly, in such a way that information about his/her detention or the place of detention is not known or does not come to light. (2) A person committing or causing the commission of an offense under subsection (1) shall be liable to imprisonment for up to four years and a fine of up to forty thousand rupees. 204. Compensation to be Awarded: Reasonable compensation shall be recovered from the offender committing or causing the commission of an offense under this Chapter and given to the victim. 205. Limitation: For an offense under subsection (3) of Section 200, no complaint shall lie after the expiry of three months from the date of such offense; and for other offenses under this Chapter, no complaint shall lie after the expiry of three months from the date the detained person is released from detention. Chapter-16 Offenses Relating to Enforced Disappearance of Persons 206.

Not to Commit or Cause an Act of Enforced Disappearance: (1) No person shall commit or cause an act of enforced disappearance of another. (2) For the purpose of subsection (1), "act of enforced disappearance" means the following acts:- (a) Where a person authorized to arrest, investigate, or enforce law, or a security personnel, arrests, detains, or otherwise takes into control a person, and fails to produce such person before the adjudicating authority within twenty-four hours, excluding travel time, from the date of such arrest or

control, or fails to allow concerned persons to meet him/her, or fails to provide information regarding where, how, and in what condition such person is being held, (b) Where a person, organization, or organized or unorganized group kidnaps, takes into custody or control, or otherwise deprives a person of his/her personal liberty, and fails to provide information to the concerned persons regarding the reason for such deprivation and where, how, and in what condition such person is being held. (3) The person who orders the arrest, detention, or control of a person leading to enforced disappearance, and the person who executes such order, shall be deemed to be the principal offender of the enforced disappearance. (4) If the act of enforced disappearance is done pursuant to the order or direction of a person holding a public office, or a responsible person of an organization or organized or unorganized group, the person giving such order or direction shall be deemed to be the principal offender of the enforced disappearance. (5) If a person, having knowledge that an act of enforced disappearance is about to be done or caused by a subordinate official, body, or group under his/her supervision, neglects such matter or fails to take necessary measures to prevent such act, he/she shall also be deemed to have committed an offense under this Section. (6) If a person is disappeared collectively by more than one person, each person involved in such act shall be deemed equally liable. (7) A person committing an offense under subsection (1) shall be liable to punishment as follows:- (a) For the principal offender of the enforced disappearance, considering the period and conditions of disappearance, imprisonment for up to fifteen years and a fine of up to five lakh rupees, (b) For an abettor or conspirator in the enforced disappearance, punishment equivalent to that of the principal offender; and for a person attempting or arranging for the same, half of the punishment for the principal offender. (8) A person committing an act deemed to be an offense under subsection (1) against a woman or child shall, in addition to the punishment under subsection (7), be liable to an additional term of two years imprisonment. (9) If, while a person is disappeared, any other offense punishable by law is committed against the disappeared person, such person shall, in addition to the punishment for that offense under law, be liable to an additional punishment under this Section. (10) A person who uses government resources, buildings, weapons, or materials to cause enforced disappearance shall, in addition to the punishment under this Section, be liable to an additional term of one year imprisonment.

207. Confiscation of Materials Related to the Offense: In committing an offense punishable under this Chapter, any land, vehicle, weapon, and all other materials used with the knowledge or consent of the owner shall be confiscated. Provided that government buildings, resources, weapons, and materials shall not be confiscated. 208. Right to Recover Compensation: (1) If a disappeared person later surfaces or is surfaced, he/she shall be entitled to recover reasonable compensation from the person who caused the disappearance.

(2) If the disappeared person has died, the compensation under subsection (1) may be recovered by his/her next of kin. 209. Property to be Returned: If, while causing the enforced disappearance of a person under this Chapter, the property of such person is also taken, such property shall be returned to the disappeared person or his/her next of kin by the person causing the disappearance; and if not available, reasonable compensation for such property shall be paid. 210. Limitation: No complaint shall lie after the expiry of six months from the date of knowledge of the offense under this Chapter, or from the date the disappeared person surfaces or is surfaced. Provided that if a complaint is filed with the court's permission, citing reasons and evidence that circumstances to file the complaint did not exist, a complaint may be lodged at any time.

Chapter - 17

Offenses Relating to Kidnapping or Hostage-Taking

211. Not to Kidnap: (1) No person shall kidnap or cause to be kidnapped another person.

(2) For the purpose of subsection (1), if a person does any of the following acts, he/she shall be deemed to have kidnapped:-

(a) Taking or compelling any person to go to any place by using force or threatening to use force, by deception, by causing fear or terror, by coercion, by showing or not showing weapons, by trickery, by administering narcotic or intoxicating substances, by taking control of or seizing the vehicle in which a person is traveling or by otherwise controlling it, or

(b) Taking any person to any place without his/her consent, or taking a child, a person living under the care of another due to physical disability, or a person not in their senses due to mental illness, without the consent of his/her father, mother, or guardian, or by trickery or forcibly. 212.

Not to Take Hostage: (1) No person shall take another person as hostage. (2) For the purpose of subsection (1), if a person detains or controls another person without his/her consent, or in the case of a child or a person not in their senses, without the consent of his/her father, mother, or guardian, by using force or threatening to use force, by causing fear or terror, by coercion, by showing or not showing weapons, by deception, by trickery, by administering narcotic or intoxicating substances, by seizing or taking control of the means of transport or place of residence, such person shall be deemed to have taken a hostage. (3) Notwithstanding anything written in subsection (2), keeping a mentally ill person under the supervision or control of someone for treatment or any other purpose, with the consent of his/her father, mother, or guardian, and with good faith for the benefit of the concerned person, shall not be deemed as taking a hostage. 213. Punishment for Kidnapping or Hostage-Taking: If a person does or causes to be done any act under Section 211 or 212 with the intention of: taking life, causing injury by assault, committing rape or unnatural sex, selling a person or enslaving, compelling forced labor against will, engaging in prostitution, inflicting torture, compelling to do or not do any act, obtaining ransom, or causing any other act that is an offense under prevailing law, such person shall be liable to imprisonment for a term of seven to ten years and a fine of seventy thousand to one hundred thousand rupees; and if done for any other purpose, imprisonment for a term of three to five years and a fine of thirty thousand to fifty thousand rupees. 214. Additional Punishment: (1) A person who kidnaps under Section 211 and takes a hostage under Section 212 shall be liable to imprisonment for a term of ten to fifteen years and a fine of one lakh to one hundred fifty thousand rupees. (2) If a person, after kidnapping or hostage-taking, commits any other act that is an offense under this Code or law, such person shall, in addition to the punishment for such offense, be liable to punishment under subsection (1). (3) If the offense under Sections 211 and 212 is committed in an organized manner, the person organizing it shall be liable to an additional term of two years imprisonment. 215.

Punishment for Abettor, Commander, Attemptor, Conspirator, or Accomplice: (1) A person who abets or commands the commission of an offense written in this Chapter shall be liable to the same punishment as the principal offender. (2) Notwithstanding anything written in subsection (1), a person who attempts, conspires, or is an accomplice to such act shall be liable to half of the punishment for that offense. 216. Reduction of Punishment upon Surrender: If a person committing an offense under this Chapter surrenders to security personnel while committing the offense, or provides assistance in arresting other offenders or members of the gang committing such offense, the court may, depending on the circumstances, reduce the punishment for such person. 217. Compensation to be Awarded: (1) If a person is found to have committed or caused an offense under this Chapter, reasonable compensation shall be recovered from the person committing or causing the offense and given to the victim. (2) If the victim has died, the compensation under subsection (1) shall be recovered and given to his/her next of kin. 218. Limitation: (1) For any offense under this Chapter resulting in death, a complaint may be filed at any time. (2) Except as written in subsection (1), for any

offense under this Chapter, no complaint shall lie after the expiry of two years from the date of such offense; and for an offense under Sections 211 and 212, no complaint shall lie after the expiry of six months from the date the concerned person is released from such offense. Chapter - 18 Offenses Relating to Sexual Assault

219. Not to Commit Rape: (1) No person shall commit rape. (2) If a person performs sexual intercourse with a woman without her consent, or with a girl under eighteen years of age even with her consent, such person shall be deemed to have raped that woman or girl.

Explanation: For the purpose of this Chapter:- (a) Consent obtained by coercion, undue influence, fear, terror, deception, kidnapping, or hostage-taking shall not be deemed as consent, (b) Consent given when not in one's senses shall not be deemed as consent, (c) Insertion of the penis into the anus or mouth, partial penetration of the penis into the anus, mouth, or vagina, and insertion of any object other than the penis into the vagina shall also be deemed as rape. (3) A person committing rape shall, considering the circumstances and the age of the woman, be liable to imprisonment as follows:- Amended by the Act Amending Some Nepal Acts Relating to the Civil Code, 2075.(a) If the victim is a girl below ten years of age, a completely disabled person, a person with disability, or a woman above seventy years of age, life imprisonment (b) If the victim is a girl aged ten years or more but below fourteen years, Amended by the Act Amending Some Nepal Acts Relating to the Civil Code, 2075.imprisonment for eighteen to twenty years, (c) If the victim is a girl aged fourteen years or more but below sixteen years, imprisonment for twelve to fourteen years, (d) If the victim is a woman aged sixteen years or more but below eighteen years, imprisonment for ten to twelve years, (e) If the victim is a woman aged eighteen years or more, imprisonment for seven to ten years. Added by the Act to Amend Some Acts Relating to Sexual Violence, 2079.(3A) In addition to the imprisonment sentence under subsection (3), a person committing rape shall also be liable to a fine as follows, and all amounts received from such fine shall be deposited in a victim relief fund established under prevailing law:- (a) For an offender liable to imprisonment under clauses (a) or (b) of subsection (3), a fine of seven lakh rupees, (b) For an offender liable to imprisonment under clauses (c) or (d) of subsection (3), a fine of five lakh rupees, (c) For an offender liable to imprisonment under clause (e) of subsection (3), a fine of three lakh rupees. (4) Notwithstanding anything written in subsection (3), if a husband rapes his wife while the marital relationship subsists, he shall be liable to imprisonment for up to five years.

Provided that the following circumstances shall not be deemed as the marital relationship subsisting:-

(a) A case for separation of maintenance and share has been filed against

11. 1111111111 1111 1111 11111: 111111 111111 1111111111 1111 111111 111111 1111111 111111 11, 1111
 111111 11111111 1 111 111 1 111 11111111111 1111 11111 11 11111111 111111111 1111 11111111 111111
 11111111111 111 111111 1111111111 1111 111111 1111111 1111 111111 11, 1111 1111111 11111111 1
 111111111111 11111111 1111 111 1111 111111 111 111111111111 1111 1111111111 111111 1111111 1111111
 1111111111111 1111 1111 1111111 1 11111111111 11111111 1111 111111 1111 111111 111111111 111 1111
 1111111111 1111 111111 1 111111 1111111 1111111111 1111 111111 111111 1111111 111111 11, 1111 1111111 11
 1 11 11111111111 1111 1111111111 111 1111111111 1111111 11111111 11111111 1111111111111 1111111 11111111 1
 111111111 111111 1111111111 111111 1111 111 111111111 111111111 1111111111 111111111 111111 111111111 111111
 111 11111111111 1111 1111111 111111111 111111 1111111111111 1111111 1111 111 1111111111 1111111111 111
 1111 1111 1111111 1 1111111 1111 1111 11 1111111111111 11111111111111 1111111 111 1111111 1111111111
 1111111 11111111 1111111 1 111. 111111111: (1) 111 111 111111111111 1111111 111111 1111 111 111111 1111
 1111111 1 (1) 111 111, 111, 111, 111, 111, 111 1 1111111 1111111 11111111111 1111 111111 111111 1111111
 111111 11, 1111 1111111 11111111 1 111 11 111111 (1) 1 111 11111. 11 111111 (1) 1111111111111 1111
 111111111111111 111111111 11111111 11111111111 111111 11111 11111 11111 11111111 111 111111111111.

????? ?????? ?????? ?? ????? ??????? ????? ????? ?????? ?????? ?? ? (?) ?????? (?) ??????? ??????? ??????
 ????????? ?????, ?????? ?? ?????? ????? ??????? ????? ?????? ?? ??????? ?????? ?? ????????? ??????
 ?????????????? ? (?) ?????? ??????? ??????? ?? ?????? ?? ??????? ?????????? ?????? ?????? ?? ?????? ????
 ??????? ?????? ?????????? ?????????? ?????? ?? ?????? ?????????? ?????? ?? ?????? ??????? ? (?) ?????? (?), (?) ??
 (?) ??????? ?????????? ?????, ??????? ?????????????? ??? ?????????? ??? ? ??? ?????? ?????????????? ??????????
 ?????? ? (?) ?????? (?), (?) ?? (?) ?????????? ?????? ?????? ?????????? ?????? ?????? ?????? ?????? ??? ?
 ?????????? ??????? ?????????? ?? ?? ?? ?? ?? ?? ? ???. ?????????????? ?????? ??????? ?????? ?????? ??????: (?)
 ?????? ??????? ?????? ??????? ?????? ?????? ?????? ?????????????? ?????? ?????? ?????? ?????? ??????????
 ?????????? ?????? ??????? ?????? ??????? ??????? ??? ?????? ?????? ?????? ?????? ??, ??????? ?? ?????????????? ?????? ??????
 ?????? ?????? ??????? ? (?) ?????? (?) ?????????? ?????? ?????? ?? ??????? ?????????????? ??? ?????????? ??? ??
 ??? ?????? ?????????????? ?????????? ?? ?????? ?????? ?????? ? ???. ??????? ?????? ?? ?????? ?? ??????? ?????? ?????
 ??????? ?????? ??????: (?) ?????? ?????????? ??????? ??? ?????? ?? ??? ?? ??????? ?? ?????????? ?????? ???
 ?????? ??????? ??????? ?????? ?? ??????? ?????????? ??????? ?????? ?????? ?? ?????? ?????? ?????????? ??????
 ?? ?????????? ?????????? ?????????? ?? ?? ?????? ?????????????? ?????????? ?????? ?????? ?????? ?? ?????? ?????? ??????? ?
 (?) ?????? (?) ?????????? ?????? ?????? ?????????????? ?????? ??????? ?????? ?????? ??????????

?????? ?????? ?????? ??? ?? ????? ?????? ? (?) ??? ??? ?? ??? ?????????? ?????? ????? ?? ????? ?????? ? (?)
?????? (?) ?????????? ????? ?????? ?????????????? ?????? ????????? ????? ?

?????-

(?) ?????? (?) ?? ?????? (?) ?? (?) ?????????? ????? ?? ??? ?????????? ??? ?????????? ??? ? ?????? ?????
???????????????? ?? ??? ?????? ????? ????????????????? ?????????,

(?) ?????? (?) ?? ?????? (?) ?? (?) ?????????? ????? ?? ??? ?????? ?????????? ?? ?????????? ??? ? ?????? ?????????? ??
??? ????????????????? ????????? ? ????. ??????? ????????? ????? ?????? ??? ?????? ??????: (?) ?????? ?????? ?????? ??
?????? ??????? ????????? ????? ?? ?????????? ????????? ??? ?????? ?????, ??????????, ??????????, ??????? ??????,
??????, ??????? ??? ?????? ?? ??????? ?? ?????????? ?????? ?? ??????? ?????? ?? ??????? ?????? ?????? ?????
??????

(5) If any person has obtained any property by fraud, such person shall return such property to the concerned owner, and if such property has been destroyed, the loss thereof shall be recovered from the other assets of the offender and paid to the owner. 280. Not to bring forged document into use as if genuine: (1) No person shall, knowing or having reasonable cause to believe that a document is forged, bring such document into use as if it were genuine.

(2) A person committing or causing to commit an offense under sub-section (1) shall be liable to the same punishment as for committing forgery. 281. Punishment as abettor: (1) A person who knowingly witnesses or writes a document knowing it to be a forged document shall be deemed an abettor of the offense of forgery.

(2) An abettor under sub-section (1) shall be liable to half the punishment mentioned in sub-section (3) of Section 276 as amended by the Act Amending Some Nepal Acts Relating to the Civil Code, 2075. 282. Compensation to be paid: If any person has suffered loss or damage from an offense under this Chapter, reasonable compensation for such loss or damage shall be recovered from the offender and paid to the person who suffered such loss or damage. 283. Limitation: No complaint shall lie after the expiry of two years from the date of knowledge of the forgery of a public document, and after the expiry of six months from the date of knowledge of the commission of any other offense under this Chapter. Chapter-26

Offenses Relating to Criminal Trespass and Criminal Nuisance

284.

Not to commit criminal trespass: (1) No person shall commit or cause to commit criminal trespass upon the property of another. (2) For the purposes of sub-section (1), if a person, without authority, enters into any property owned or possessed by another person, without the consent of such person, whether with or without a crowd, with the intention of doing any of the following acts, or having entered with consent, remains in, occupies, or uses such property with the intention of doing any such act, such person shall be deemed to have committed criminal trespass: (a) to commit any offense, or (b) to intimidate, insult, or annoy the person who owns or possesses the property. (3) A person committing an offense under sub-section (1) shall be liable to the following punishment: (a) for criminal trespass for the purpose of clause (a) of sub-section (2), the same punishment as for attempting such offense, (b) for entering a government office or a house where a person resides with the intent mentioned in clause (b) of sub-section (2), imprisonment for up to six months or a fine of up to five thousand rupees or both. Explanation: For the purposes of this section: (1) A place of temporary residence shall also be deemed a house. (2) Entering or using a path, passage, water spout, irrigation canal, cremation ground, or temple that has been used since ancient times shall not be deemed

criminal trespass. 285.

Not to commit criminal nuisance: (1) No person shall commit or cause to commit criminal nuisance. (2) For the purposes of sub-section (1), if a person does any of the following acts, such person shall be deemed to have committed criminal nuisance: (a) destroying any government, public, or private property, or doing any act that diminishes its value, importance, or utility, with intent to cause harm, loss, or damage to the Government of Nepal, the Provincial Government, or a Local Level, an organized institution wholly or substantially owned or controlled by the Government of Nepal, the Provincial Government, or the Local Level, the general public, or any person, or knowing or having reasonable cause to believe that such damage may be caused, or through negligence or recklessness, (b) causing harm, loss, or undue damage to, or doing any act causing damage to, public or private drains, passages, canals, wells, roads, bridges, or any means of communication or transportation, etc., or knowingly creating any kind of obstacle, interference, harm, loss, or undue damage to the use thereof, or doing any act causing damage, (c) except under the order of a competent authority, destroying, removing, erasing, or damaging any sign or mark placed for public convenience, (d) obstructing another's work, business, or profession by spreading false rumors or using any means of deception, or damaging the goodwill of another's trade, (e) concealing or mala fide delaying the delivery of another's letter, information, parcel, or any other goods. (3) A person committing an offense under sub-section (1) shall be liable to the following punishment: (a) if fire or explosive substances are used to set fire to a national park or reserve or conservation area, a historical or archaeological monument or pillar included in the World Heritage List, a place or museum where objects of historical or archaeological importance are collected, an archive where historical documents are kept, a military or paramilitary house or place where arms and ammunition of the army or police are stored, a security printing press, a mint for coinage, a factory, or a warehouse of Nepal Rastra Bank for printing or storing banknotes, with the intention of completely destroying the existence of any species of wildlife or plant protected by the Government of Nepal or protected by law, imprisonment for life and a fine according to the value of the loss, (b) if criminal nuisance is committed by setting fire to or using explosive substances in any historical, archaeological, or religious monument or pillar (other than those mentioned in clause (a)), a building containing documents of public or government importance, or a court having a treasury, a constitutional body, an office of the Government of Nepal, Provincial Government, or Local Level, or an institution wholly or substantially owned or controlled by the Government of Nepal, the Provincial Government, or the Local Level, a foreign diplomatic mission, or an office of an international or intergovernmental organization, imprisonment for five to twelve years and a fine according to the value of the loss, (c) if criminal nuisance is committed by causing damage to any public property by doing any act other than those mentioned in clause (a) or (b), imprisonment for up to four years and a fine of up to forty thousand rupees, (d) for committing criminal nuisance by setting fire to or using explosive substances in another's house, office, or any property, imprisonment for two to five years and a fine of twenty thousand to fifty thousand rupees, (e) if, as a result of committing criminal nuisance by doing any act other than those mentioned in clause (a), (b), (c), or (d), any person suffers any harm or loss, imprisonment for up to three years and a fine of up to thirty thousand rupees. (4) If any person suffers harm or loss from an offense under this section, compensation equal to the amount of the harm or loss suffered shall be recovered from the offender and paid to the victim.

286. Not to commit rioting/looting: (1) No person shall commit or cause to commit rioting/looting.

(2) For the purposes of sub-section (1), if a person, otherwise than by theft or fraud, by force or without force, by snatching, seizing, or manhandling, or by threatening to do so, does any act with the intention of taking away or causing harm or loss to property owned, entrusted to, or under the control of another, to which such

person has no right, such person shall be deemed to have committed rioting/looting.

(3) A person committing an offense under sub-section (1) shall be liable to imprisonment for up to three months or a fine of up to twenty-five percent of the value of the looted property, or both, and the value of the looted property shall be recovered from the offender and paid to the victim. 287. Not to take property obtained by committing an offense: (1) No person shall take, keep, or buy or sell any property knowing or having reasonable cause to believe that it is property obtained by committing an offense.

(2) A person committing or causing to commit an offense under sub-section (1) shall be liable to imprisonment for five years or a fine of up to fifty thousand rupees, or both.

(3) Property taken, kept, or bought or sold under sub-section (1) shall be returned to the owner of such property. 288. Limitation: No complaint shall lie after the expiry of six months from the date of commission of the offense under Section 284 or 285, after the expiry of three months from the date of commission of the offense under Section 286, and after the expiry of three months from the date of knowledge of the commission of any other offense under this Chapter. Chapter-27

Offenses Relating to Animals

289.

Not to kill or beat cow or ox: (1) No person shall do or cause to do any act with the intention of killing or causing any injury to a cow or ox. (2) If a cow or ox dies as a result of an act under sub-section (1), the person committing such offense shall be liable to imprisonment for up to three years. (3) If any person beats a cow or ox causing dismemberment, such person shall be liable to imprisonment for up to six months, and if causing other injury, a fine of up to fifty thousand rupees. (4) Notwithstanding anything written in sub-section (1), if any person does any act necessary to prevent damage to his or another's body or life being caused by a cow or ox, and as a result such cow or ox dies or suffers any injury, such act shall not be deemed an offense under this section. 290. Not to treat animals cruelly: (1) No person shall treat any animal cruelly or brutally by beating, driving, causing it to carry a load beyond its carrying capacity, causing it to run beyond its ability, using for work an animal incapable of work due to disease, wound, sore, or any other reason, administering harmful substances, or in any other way causing torture; nor shall any person abandon a domesticated animal in public due to it being sick or old; nor shall any person treat any animal in any other cruel or brutal manner. Provided that, for the purpose of teaching or training an animal to do work, or to make it proficient in its work, the use of minimal force shall not be prohibited, nor shall there be any obstruction to having an animal carry or run with a load according to its physical capacity. (2) A person committing or causing to commit an offense under sub-section (1) shall be liable to imprisonment for up to three months or a fine of up to five thousand rupees, or both. 291. Not to kill animal or bird in a public place: (1) Except as otherwise provided in this Code, no person shall kill any animal or bird in any public place other than a religious site where sacrifice has traditionally been offered. Provided that there shall be no bar to killing an animal or bird at a fair, festival, market, or event, or place where the slaughter of animals or birds has traditionally been practiced.

Explanation: For the purposes of this section, "public place" means a path, road, bridge, courtyard, or place where people move about. (2) When a sacrifice is required under sub-section (1), no animal or bird may be sacrificed in a public or religious site other than a religious site where sacrifice has traditionally been offered. (3) When a sacrifice of an animal or bird is required under sub-section (1), if other alternatives to the sacrifice of an animal or bird exist, such alternative measure shall be adopted. (4) If it is not possible to adopt the

measure under sub-section (3) and the sacrifice of an animal or bird must be made, the sacrifice shall be performed at a place determined by the management of the concerned religious site and in accordance with the method determined by it for that purpose. (5) A person committing or causing to commit an offense under this section shall be liable to imprisonment for up to one month or a fine of up to five thousand rupees, or both. 292. Limitation: No complaint shall lie in respect of an offense under Section 290 after the expiry of three months from the date of commission of such offense, and in respect of any other offense under this Chapter after the expiry of three months from the date of knowledge of the commission of such offense. Part-3 Offenses Against Personal Privacy and Reputation Chapter-1 Offenses Against Privacy 293. Not to listen to or record sound of another's conversation: (1) No person shall, without the permission of a competent authority or without the consent of the persons conversing, listen to or make a sound recording of any conversation between two or more persons by using any mechanical device. (2) A person committing or causing to commit an offense under sub-section (1) shall be liable to imprisonment for up to two years or a fine of up to twenty thousand rupees, or both. Provided that this section shall not apply to speeches or statements made in public. 294. Not to disclose confidential matter: (1) No person shall disclose any confidential matter of a person learned in the course of his professional work, except where compelled by law or where such person has given permission. (2) A person committing an offense under sub-section (1) shall be liable to imprisonment for up to one year or a fine of up to ten thousand rupees, or both. 295.

Not to photograph a person or distort a photograph without permission: (1) No person shall, without the permission of a person, photograph such person, or create another photograph by superimposing the photograph of someone else with that person's photograph. Provided that if, while taking a photograph of any public place, a photograph of a person present at such place is also taken incidentally, it shall not be deemed an offense under this section. (2) A person committing or causing to commit an offense under sub-section (1) shall be liable to imprisonment for up to one year or a fine of up to ten thousand rupees, or both. (3) No person shall create or publish a distorted photograph by combining a part of one person's photograph with another part of another person's photograph, or in any other manner. (4) A person committing or causing to commit an offense under sub-section (3) shall be liable to imprisonment for up to two years or a fine of up to twenty thousand rupees, or both. 296. Not to give or sell another's photograph to others without permission: (1) No person shall, without the permission of a person, give or sell such person's photograph to others, or publish, disseminate, or buy or sell such photograph with the intention of annoying, harassing, troubling such person, or taking any undue advantage from such person, or obtaining benefit by commercial use of the photograph. (2) A person committing or causing to commit an offense under sub-section (1) shall be liable to imprisonment for up to three years or a fine of up to thirty thousand rupees, or both. 297. Not to open letter or listen to telephone conversation: (1) Without the permission of a competent authority or the concerned person, no person shall open another's letter, or listen in the middle to the telephone conversation of others by using any mechanical device, or make a sound recording thereof. (2) A person committing or causing to commit an offense under sub-section (1) shall be liable to imprisonment for up to two years or a fine of up to twenty thousand rupees, or both. 298. Not to breach privacy through electronic means: (1) No person shall breach the confidentiality of information, knowledge, or communication existing or transmitted in an electronic medium to obtain it without authorization, or transfer or cause to transfer it to another without authorization. (2) A person committing or causing to commit an offense under sub-section (1) shall be liable to imprisonment for up to two years or a fine of up to twenty thousand rupees, or both. 299.

Not to transmit deceptive telephone calls or messages: (1) No person shall transmit or cause to transmit deceptive telephone calls or messages, whether disclosing his identity or not, with the intention of deceiving, cheating, harassing, or troubling another. (2) A person committing or causing to commit an offense under

sub-section (1) shall be liable to imprisonment for up to two years or a fine of up to twenty thousand rupees, or both. 300. Not to write letters with mala fide intention to harass: (1) No person shall, with the mala fide intention of causing fear, terror, distress, harassment, insult, or disrespect to another, write or cause to write any letter, pamphlet, or any other kind of document, or threaten, trouble, tease, or in any other manner treat improperly by electronic means, or cause to do so. (2) A person committing or causing to commit an offense under sub-section (1) shall be liable to imprisonment for up to one year or a fine of up to ten thousand rupees, or both. 301. Not to search another's body: (1) No person shall, without the consent of the concerned person, search or cause to search another's body, vehicle, or articles of personal use, except by a person authorized by law or a person deployed for security purposes on the order of such authorized officer, or with the permission of a competent authority. (2) A person committing or causing to commit an offense under sub-section (1) shall be liable to imprisonment for up to one year or a fine of up to ten thousand rupees, or both. 302. Not to enter another's residence without authority: (1) No person shall, without the consent of the concerned householder, enter another's house without authority, breach the privacy of the householder or his family, or search or cause to search such house, except by a person authorized by law or on the order of such person. Explanation: For the purposes of this section, "house" means a house, residence, dwelling, or room where a person resides, and such term also includes a hotel room, camp, and tent where such person stays overnight. (2) A person committing or causing to commit an offense under sub-section (1) shall be liable to imprisonment for up to three years or a fine of up to thirty thousand rupees, or both. 303. Compensation to be paid: If any person, by committing an offense under this Chapter, has obtained any benefit or caused any kind of harm, loss, harassment, or damage to another, compensation for such benefit, harm, loss, harassment, or damage shall also be paid from the offender. 304.

306. Not to defame: (1) No person shall defame another.

(2) For the purposes of sub-section (1), if a person does any of the following acts, such person shall be deemed to have defamed:

(a) with the intention of harming another's reputation, or knowing or having reasonable cause to believe that harm may be caused, by writing, conduct, or image or sign or publicity, or in any other manner, directly or indirectly, in the eyes of others, lowering such person's personal character, conduct, morality, or goodwill by character assassination, or imputing that such person's body is in a generally disgusting condition, or disseminating, propagating, or publishing such imputation, or knowingly selling or distributing any article used as a means of defaming another,

(b) making an imputation against a deceased person, knowing that if such imputation were made when such person was alive, it would have harmed his reputation, and intending to hurt the feelings of his family or other near relatives,

(c) Deleted by the Act Amending Some Nepal Acts Relating to the Civil Code, 2075.(c)

(3) Notwithstanding anything written in sub-section (2), the following acts shall not be deemed defamatory:

(a) publishing or transmitting true facts relating to a person, with evidence and basis, in the interest of the general public,

(b) a public servant publishing, in good faith and in a dignified manner, any matter concerning the conduct of any person arising from the performance of his official duties, or concerning his character only to the extent that it is understood from such conduct,

(c) expressing in good faith any opinion concerning the conduct of a person relating to the importance of any public position or office, and concerning his character to the extent understood from such conduct,

(d) expressing in good faith and in a dignified manner any opinion on the quality or defect of any matter

submitted by a person for public opinion, or on the character of the person submitting such matter only to that extent,

(e) imputing, in good faith, any defect in the conduct of a person over whom another person has a right by law or by contract, in matters relating to such right,

(f) investigating any offense in accordance with law, or prosecuting a person on such basis in accordance with law,

(g) warning another against any other person for the benefit of that other person, for the benefit of a person in whom that other person has an interest, or for the benefit of the general public,

(j) Added by the Act Amending Some Nepal Acts Relating to the Civil Code, 2075.(j) satirizing or making any comment with basis and reason, or publishing or transmitting any matter, in good faith, concerning any act, character, or conduct of a person, for the sake of public interest, integrity, or morality.

307. Punishment for defamation: (1) If any person defames or causes to defame another, such person shall be liable to imprisonment for up to two years or a fine of up to twenty thousand rupees, or both. Provided that if defamation is committed or caused through electronic or other mass media, in addition to such punishment, there shall be imprisonment for up to one year and a fine of up to ten thousand rupees.

(2) If a person is found to have defamed or caused to defame another, the person defamed shall be paid reasonable compensation from the offender, having regard to the gravity of the offense, the effect on the reputation of such person, and if the defamation was committed through electronic or other mass media, considering that fact as well, and the costs incurred by such person in the case shall also be recovered from the offender.

(3) If a deceased person is found to have been defamed under this Chapter, such compensation and the amount of costs incurred in the case shall be recovered from the offender and paid to the near successor of the deceased whose feelings were hurt by such defamation. 308. Limitation: No complaint shall lie after the expiry of three months from the date of knowledge of the commission of an offense under this Chapter.